City of Gallatin
City Council Meeting
September 17, 2024, 6:00 PM

- Call to Order - Mayor Brown
- Invocation
- Roll Call: Allison - Carter - Fann - Fennell - Hayes - Jouvence - Vice Mayor Love
- Approval of Minutes

  CITY COUNCIL MINUTES - SEPTEMBER 3, 2024

- Public Recognition on Agenda-Related Items
- Mayor's Comments

AGENDA

1. **PUBLIC HEARING ORDINANCE NO. O2408-45** AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, APPROVING AN AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN FOR GALLATIN GAP ON TWO PARCELS, TOTALING 35.01 +/- ACRES, LOCATED NORTH OF NASHVILLE PIKE AND WEST OF HARRIS LANE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (MDP-2024-0390). **(COUNCILMAN CARTER)**

2. **SECOND READING ORDINANCE NO. O2408-40** AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING 24.49 +/- ACRES FROM THE PGC-PLANNED GENERAL COMMERCIAL DISTRICT TO THE MRO-MULTIPLE RESIDENTIAL AND OFFICE DISTRICT WITH AN AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN FOR THE CROSSINGS AT HIDDEN CREEK, PHASES 1 AND 2, ON FIVE PARCELS, TOTALING 120.50 +/- ACRES, LOCATED NORTH OF HIGHWAY 386 AND EAST OF BIG STATION CAMP BOULEVARD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2024-0099). **(COUNCILMAN FENNELL)**

3. **<u>SECOND READING ORDINANCE NO. O2408-41</u>** AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING 47.51 +/- ACRES FROM THE SP–SPECIFIC PLAN DISTRICT TO THE MRO (PUD)–MULTIPLE RESIDENTIAL AND OFFICE (PLANNED UNIT DEVELOPMENT) DISTRICT IN THE GREENSBORO VILLAGE PUD (TAX MAP 136, PARCEL 004.04), AND A PRELIMINARY MASTER DEVELOPMENT PLAN/PUD AMENDMENT FOR A MULTI-TENANT RETAIL DEVELOPMENT, TOTALING 56.47 +/- ACRES, LOCATED EAST OF GREENLEA BOULEVARD AND NORTH OF NASHVILLE PIKE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2024-0098). **(COUNCILMAN HAYES)**

4. **<u>SECOND READING ORDINANCE NO. O2408-44</u>** AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 0.286 +/- ACRE LOT (TAX MAP 113O, GROUP N, PARCEL 002.05) FROM THE R-10 MEDIUM DENSITY RESIDENTIAL ZONE DISTRICT TO THE R-6 HIGH DENSITY RESIDENTIAL ZONE DISTRICT, LOCATED SOUTH OF WEST EASTLAND AVENUE AND EAST OF PAFFORD PLACE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2024-0096). **(COUNCILMAN CARTER)**

5. **<u>SECOND READING ORDINANCE NO. O2408-48</u>** ORDINANCE APPROPRIATING $380,000 FROM THE GENERAL FUND UNASSIGNED FUND BALANCE TO THE POLICE DEPARTMENT GUN RANGE CONSTRUCTION PROJECT **(COUNCILMAN ALLISON)**

6. **<u>FIRST READING ORDINANCE O2408-49</u>** APPROPRIATING $9,831.75 FOR REPAIRS TO ENVIRONMENTAL SERVICES VEHICLES **(COUNCILMAN JOUVENCE)**

7. **<u>FIRST READING ORDINANCE NO. O2409-50</u>** AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 3.62 +/- ACRE LOT (TAX MAP 112, PARCEL 038.00) FROM THE AAGRICULTURAL RESIDENTIAL ZONE DISTRICT TO THE R-15 MEDIUM DENSITY RESIDENTIAL ZONE DISTRICT, LOCATED NORTH OF HARTSVILLE PIKE AND EAST OF ENOCH WAY; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2024-0102). **(VICE MAYOR LOVE)**

8. **<u>FIRST READING ORDINANCE NO. O2409-51</u>** AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 3.69 +/- ACRE LOT (TAX MAP 125M, GROUP A, PARCEL 001.11) FROM THE CS - COMMERCIAL SERVICES DISTRICT, MU - MIXED USE DISTRICT AND CG - COMMERCIAL GENERAL DISTRICT TO THE CG - COMMERCIAL GENERAL DISTRICT, LOCATED NORTH OF TULIP POPLAR DRIVE AND WEST OF WARWICK ROAD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2024-0103). **(COUNCILMAN JOUVENCE)**

9. **FIRST READING ORDINANCE NO. O2409-52** AN ORDINANCE APPROPRIATING FUNDS FOR 2024 CARRYOVER PROJECTS **(COUNCILMAN ALLISON)**

10. **RESOLUTION NO. R2409-76** A RESOLUTION AUTHORIZING THE ISSUANCE OF NOT TO EXCEED $12,200,000 IN AGGREGATE PRINCIPAL AMOUNT OF ELECTRIC SYSTEM REVENUE BONDS, SERIES 2024 OF THE CITY OF GALLATIN, TENNESSEE; MAKING PROVISION FOR THE ISSUANCE, SALE AND PAYMENT OF SAID BONDS; ESTABLISHING THE TERMS THEREOF AND THE DISPOSITION OF PROCEEDS THEREFROM; PROVIDING FOR THE COLLECTION AND DISPOSITION OF REVENUES FROM THE ELECTRICAL POWER DISTRIBUTION SYSTEM OF THE MUNICIPALITY; AND MAKING PROVISION FOR THE OPERATION OF SAID SYSTEM. **(COUNCILMAN FANN)**

11. **RESOLUTION NO. R2409-77** RESOLUTION AWARDING HEALTH, VISION AND DENTAL INSURANCE CONTRACT FOR THE CITY OF GALLATIN **(VICE MAYOR LOVE)**

- Other Business

  REPORT ON 2024 GAS BOND PRESENTATION OF STATE OF TENNESSEE COMPTROLLER REPORT ON DEBT OBLIGATION

- Public Recognition on Non-Agenda-Related Items
- Adjourn

The City of Gallatin
City Council Meeting

Tuesday, September 3, 2024

The Gallatin City Council met in regular session on Tuesday, September 3, 2024, in the Dr. J. Deotha Malone Council Chambers at Gallatin City Hall. Mayor Paige Brown called the meeting to order at 6:02 P.M. Councilman Aaron Allison led the opening prayer and Councilman Craig Hayes led the pledge of allegiance.

City Recorder Connie Kittrell called the roll call, and the following were present:

Present:	**Absent:**
Mayor Paige Brown	
Vice Mayor Lynda Love	
Councilman Aaron Allison	
Councilman Steven Carter	
Councilman Steve Fann	
Councilman Shawn Fennell	
Councilman Craig Hayes	
Councilman Pascal Jouvence	

Department Heads and Others Present:

Brandon Howell, Asst. Building Director	Jeff Beaman, Fire Chief
Susan High-McAuley, City Attorney	Courtney Cangemi, H.R. Director
Nick Tuttle, City Engineer	Jennifer LeFevre, I.T. Director
Brian Rose, City Planner	David Brown, Parks & Rec. Director
Connie Kittrell, City Recorder	Don Bandy, Police Chief
Rosemary Bates, EDA Director	David Kellogg, Public Utilities Director
Rachel Nichols, Finance Director	Richard Depriest, Public Works Director

Approval of Minutes

Mayor Brown presented the August 6, 2024, and August 20, 2024, City Council minutes for approval.

Vice Mayor Love made motion to approve; Councilman Hayes seconded. Motion carried with 7 ayes and 0 nays.

Public Recognition on Agenda-Related Items

Mayor Brown opened public recognition on agenda-related items.

- Jeff Hollins of 904B Lower Station Camp Creek Road.

With no one else wishing to speak, public recognition on agenda-related items was closed.

Mayor's Comments

- Mayor Brown proclaimed September 1, 2024 – January 31, 2025, Holiday Fest.

- Mayor Brown thanked everyone for their hard work with the gas line incident at Triple Creek Park.

- Mayor Brown reminded everyone to complete the Special Census 2024.

Mayor Brown announced the following events:

- September 5, 2024 – Red Cross Blood Drive at the Civic Center.

- September 5, 2024 – Legal Aid Society's Open House at The Station.

- September 7, 2024 – Pawpalooza & Pool Party at the Civic Center.

- September 7, 2024 – Hawthorn Hill Tours.

- September 7, 2024 – Car Cruise in at the Civic Center.

- September 11, 2024 – Gallatin Fire Department's 9/11 Ceremony at City Hall.

- September 14, 2024 - National Softball Tournament at Triple Creek Park.

Agenda

1. **Ordinance #O2408-40 – Public Hearing**

   Councilman Fennell presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 24.49 (+/-) acres from the PGC-Planned General Commercial District to the MRO-Multiple Residential and Office District with an Amended Preliminary Master Development Plan for The Crossings at Hidden Creek, Phases 1 and 2, on five parcels, totaling 120.50 (+/-) acres, located north of Highway 386 and east of Big Station Camp Boulevard; authorizing the revision to be indicated on the official zoning atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date (Zone-2024-0099).

   Mayor Brown opened public hearing.

   With no one wishing to speak, public hearing was closed.

2. **Ordinance #O2408-41 – Public Hearing**

   Councilman Hayes presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 47.51 (+/-) acres from the SP–Specific Plan District To The MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District in the Greensboro Village PUD (Tax Map 136, Parcel 004.04), and a Preliminary Master Development Plan/PUD Amendment for a Multi-Tenant Retail Development, totaling 56.47 (+/-) acres, located east of Greenlea Boulevard and north of Nashville Pike; authorizing the revision to be indicated on the official zoning atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date (Zone-2024-0098).

   Mayor Brown opened public hearing.

   With no one wishing to speak, public hearing was closed.

3. **Ordinance #O2408-44 – Public Hearing**

   Councilman Carter presented this ordinance of the City Of Gallatin, Sumner County, Tennessee, rezoning a 0.286 (+/-) acre lot (Tax Map 113O, Group N, Parcel 002.05) from the R-10 Medium Density Residential Zone District to the R-6 High Density Residential Zone District, located south of West Eastland Avenue and east of Pafford Place; authorizing the revision to be indicated on the official zoning atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date (Zone-2024-0096).

Mayor Brown opened public hearing.

With no one wishing to speak, public hearing was closed.

4. **Ordinance #O2408-38 – Second Reading**

Councilman Hayes presented this ordinance amending Gallatin Municipal Code Chapter 17, Article IV, Section 17-256 – Rates, Section 17- 257 – Fees and Charges, Section 17-260 – Minimum Bill, Section 17-265(B)(1)B – Gas Service Line Extensions and Fees.

Councilman Hayes made motion to approve; Councilman Fann seconded. Motion carried with 7 ayes and 0 nays.

5. **Ordinance #O2408-39 – Second Reading**

Councilman Allison presented this ordinance appropriating $30,000.00 from project Woolhawk for Building Codes Department expenses.

Councilman Allison made motion to approve; Vice Mayor Love seconded. Motion carried with 7 ayes and 0 nays.

6. **Ordinance #O2408-43 – Second Reading**

Councilman Allison presented this ordinance appropriating $20,000.00 from revenue received from TLETA Cost Sharing Grant for vehicle replacement.

Councilman Allison made motion to approve; Vice Mayor Love seconded. Motion carried with 7 ayes and 0 nays.

7. **Ordinance #O2408-45 – First Reading**

Councilman Hayes presented this ordinance of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan for Gallatin Gap on two parcels, totaling 35.01 (+/-) acres, located north of Nashville Pike and west of Harris Lane; authorizing the revision to be indicated zoning atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date (MDP-2024-0390).

Councilman Hayes made motion to approve; Councilman Fennell seconded.

Councilman Hayes made motion to suspend the rules to allow a representative for the developer to speak; Councilman Jouvence seconded. Motion carried with 7 ayes and 0 nays.

Developer Representative Garrett Ramsey provided additional information.

Mayor Brown called for the vote. Motion carried with 6 ayes and 1 nay. Councilman Jouvence voted no.

8. **Ordinance #O2408-48 – First Reading**

Vice Mayor Love presented this ordinance appropriating $380,000.00 from the General Fund Unassigned Fund Balance to the Police Department Gun Range Construction Project.

Vice Mayor Love made motion to approve; Councilman Carter seconded. Motion carried with 7 ayes and 0 nays.

9. **Resolution #R2408-71**

Councilman Jouvence presented this resolution authorizing the mayor to sign a Boat Storage Slip Rental Contract with R&R Marinas (dba Cherokee Steakhouse and Resort, Inc.)

Councilman Jouvence made motion to approve; Councilman Carter seconded. Motion carried with 7 ayes and 0 nays.

10. **Resolution #R2408-72**

Councilman Fann presented this resolution authorizing the mayor to sign an Interlocal Agreement between the Sumner County Emergency Communications District and the Gallatin Fire Department and the Gallatin Police Department for shared computer aided dispatch, records management, and mobile access services.

Councilman Fann made motion to approve; Councilman Carter seconded. Motion carried with 7 ayes and 0 nays.

11. <u>Resolution #R2408-73</u>

Vice Mayor Love presented this resolution reappointing Drew Schreiner to the Gallatin Municipal Board of Zoning Appeals Member.

Vice Mayor Love made motion to approve; Councilman Fennell seconded. Motion carried with 7 ayes and 0 nays.

12. <u>Resolution #R2408-74</u>

Councilman Fann presented this resolution reappointing Lynda Love as Board Member of the Gallatin Historic District Commission.

Councilman Fann made motion to approve; Councilman Jouvence seconded. Motion carried with 7 ayes and 0 nays.

<u>Other Business</u>

Mayor Brown opened other business.

- City Attorney Susan High-McAuley asked to defer the dangerous building located at 1119 Peninsula Drive.

  Councilman Hayes made motion to defer sixty days; Councilman Jouvence seconded. Motion carried with 7 ayes and 0 nays.

- Attorney Susan High-McAuley asked for councils support to draft a summary for the Sales Tax Referendum.

  Councilman Jouvence made motion to allow city attorney to change; Councilman Carter seconded. Motion carried with 7 ayes and 0 nays.

- Councilman Jouvence spoke about job vacancies.

  Council discussed.

With no one else wishing to speak, other business was closed.

Public Recognition on Non-Agenda-Related Items

Mayor Brown opened public recognition on non-agenda-related items.

- Rene Saunders of 2092 Rodman Boulevard.

With no one else wishing to speak, public recognition on non-agenda-related items was closed.

Adjourn

Vice Mayor Love made motion to adjourn; Councilman Fennell seconded. Motion carried with 7 ayes and 0 nays.

Mayor Brown adjourned the meeting at 6:49 P.M. without objection.

______________________________	______________________________
Mayor Paige Brown	City Recorder Connie Kittrell

ORDINANCE NO. O24Ø8-45

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, APPROVING AN AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN FOR GALLATIN GAP ON TWO PARCELS, TOTALING 35.01 +/- ACRES, LOCATED NORTH OF NASHVILLE PIKE AND WEST OF HARRIS LANE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (MDP-2024-0390).

WHEREAS, the applicant submitted a complete application for an Amended Preliminary Master Development Plan and Final Master Development Plan on 35.01 +/- acres, located north of Nashville Pike and west of Harris Lane in Gallatin, Tennessee; and

WHEREAS, the property is currently zoned MRO-Multiple Residential and Office and PGC-Planned General Commercial with an approved Preliminary Master Development Plan; and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of the Amended PMDP/FMDP in GMPC Resolution No 2024-098; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tennessee Code Annotated, Section 13-7-203; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby approve an Amended Preliminary Master Development Plan for Gallatin Gap on two parcels totaling 35.01 +/- acres, zoned MRO- Multiple Residential and Office and PGC-Planned General Commercial, as described in Exhibit 'A'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: September 3, 2024

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

EXHIBIT 'A'

The Amended Preliminary Master Development Plan for Gallatin Gap consists of a 43 sheet plan, prepared by Kimley-Horn and Associates of Nashville, TN, dated June 11, 2024 with a revision date of July 8, 2024 and a 43 sheet architectural elevation package, prepared by Axiom Architecture and Interior Design of Charlotte, North Carolina, with the following conditions:

1. Provide landscape screening around all HVAC units.
2. Label ramps on Sheets C2-10 though C2-13.
3. Revise vehicular access statement to reference Miracle Ford site with development of outparcels. Remove references to Nashville Pike connection on the west side of the property.
4. Clearly label 20' PUDE for off-site bypass drainage.
5. Revise landscaping plans to show larger trees along the upper berm of the bioretention ponds so that they will not conflict with the underdrains.
6. Provide pedestrian access the Gap facility and Miracle Ford with this project.
7. Graphically show all improvements required by the TIS. Update the FMDP to match the improvements required by the TIS.
8. Submit a site surety cost calculation sheet to the Planning Department for review and approval per Article 15, Section 15.03.080. A site surety, in the form of cash, certified check, or Irrevocable Letter of Credit, shall be submitted to the Planning Department prior to the recording of the final plat.
9. All signage shall meet the Gallatin Zoning Ordinance and will require approval of a sign permit.
10. Submit detailed water and sanitary sewer plans and specifications to the Public Utilities and Industrial Pre-Treatment Departments for review and approval. The water and sanitary sewer infrastructure shall be completed and accepted, or an approved utility surety shall be in place for the plat to be signed.
11. This development is subject to the Gallatin Department of Electricity new underground electric supply policy. Relocation of any GDE facilities will be at the developer's expense.
12. Submit revised digital files consisting of the PDF and AutoCAD (dwg.) drawings of the FMDP to the Planning Department addressing all condition of approval.

CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

AUGUST 13, 2024

DEPARTMENT: **PLANNING DEPARTMENT** **AGENDA #**

SUBJECT:
An Ordinance No. O2408-45 of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan for Gallatin Gap on two parcels, totaling 35.01 +/- acres.

SUMMARY:
AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, APPROVING AN AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN FOR GALLATIN GAP ON TWO PARCELS, TOTALING 35.01 +/- ACRES, LOCATED NORTH OF NASHVILLE PIKE AND WEST OF HARRIS LANE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (MDP-2024-0390).

RECOMMENDATION:
On July 29, 2024, the Gallatin Municipal Planning Commission recommended approval of a resolution by a vote of 5-1 for the Amended Preliminary Master Development Plan and Final Master Development Plan (MDP-2024-0390).

ATTACHMENT:

☐ **Resolution**	☐ **Correspondence**	☒ **Bid Tabulation**
☒ **Ordinance**	☐ **Contract**	☐ **Other**

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. O24Ø8-40

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING 24.49 +/- ACRES FROM THE PGC-PLANNED GENERAL COMMERCIAL DISTRICT TO THE MRO-MULTIPLE RESIDENTIAL AND OFFICE DISTRICT WITH AN AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN FOR THE CROSSINGS AT HIDDEN CREEK, PHASES 1 AND 2, ON FIVE PARCELS, TOTALING 120.50 +/- ACRES, LOCATED NORTH OF HIGHWAY 386 AND EAST OF BIG STATION CAMP BOULEVARD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2024-0099).

WHEREAS, the owner of the property submitted a complete application to rezone 24.49 +/- acres with an Amended Preliminary Master Development Plan for The Crossings at Hidden Creek, located in the City of Gallatin, Tennessee; and

WHEREAS, the rezoning with amended preliminary master development plan conforms to the general plan of the area including the established General Urban Community Character Area and that the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the properties proposed for rezoning with amended preliminary master development plan have adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning with amended preliminary master development plan will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of GMPC Resolution No. 2024-094 for the proposed rezoning with Amended Preliminary Master Development Plan; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone 24.49 +/- acres from the PGC-Planned General Commercial District to the MRO-Multiple Residential and Office District as described in Exhibit "A" with an Amended Preliminary Master Development Plan for The Crossings at Hidden Creek, as described in Exhibit 'B'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: August 20, 2024

PASSED SECOND READING:

____
MAYOR PAIGE BROWN

ATTEST:

____
CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

____
SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Description of PMDP

EXHIBIT ‘A’

PGC District to the MRO District Legal Description

POINT O

BEING A CERTAIN TRACT OR PARCEL OF LAND LYING AND BEING IN THE FOURTH (4th) CIVIL DISTRICT OF

SUMNER COUNTY, CITY OF GALLATIN, TENNESSEE. BEING A PORTION OF THE SAME PROPERTY CONVEYED

TO NANCY A. FRANKLIN, ETAL OF RECORD IN RECORD BOOK 4560, PAGE 664, REGISTER'S OFFICE FOR

SUMNER COUNTY, TENNESSEE (R.O.S.C.T.), AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT AN IRON ROD (OLD) WITH CAP STAMPED HFR IN THE EASTERLY RIGHT-OF-WAY OF BIG

STATION CAMP BOULEVARD (PUBLIC RIGHT-OF-WAY WIDTH VARIES), SAID IRON ROD BEING THE

SOUTHWEST CORNER OF THE JEFFREY L. HOLLINS PROPERTY OF RECORD IN DEED BOOK 523, PAGE 755,

R.O.S.C.T. AND THE NORTHWEST CORNER OF SAID NANCY A. FRANKLIN, ETAL PROPERTY;

THENCE, WITH THE SOUTH LINE OF SAID HOLLINS, GENERALLY WITH A FENCE, THE FOLLOWING TWO (2)

CALLS:

1. SOUTH 86 DEGREES 29 MINUTES 59 SECONDS EAST, 374.42 FEET TO AN IRON ROD (OLD) WITH CAP

STAMPED “RLS#910” AT A 12” HACKBERRY TREE;

2. SOUTH 85 DEGREES 42 MINUTES 45 SECONDS EAST, 75.98 FEET TO A 1/2-INCH IRON ROD (NEW) WITH

CAP STAMPED "RAGAN SMITH ASSOC", THE NORTHWEST CORNER AND POINT OF BEGINNING OF THE

HEREIN DESCRIBED TRACT;

THENCE, CONTINUING WITH THE SOUTH LINE OF SAID HOLLINS, GENERALLY WITH A FENCE, THE

FOLLOWING TWO (2) CALLS:

1. SOUTH 85 DEGREES 42 MINUTES 45 SECONDS EAST, 329.19 FEET TO AN IRON ROD (OLD) WITH CAP

STAMPED “RLS#910”;

2. SOUTH 86 DEGREES 09 MINUTES 31 SECONDS EAST, 1058.72 FEET TO AN IRON ROD (OLD) WITH CAP

STAMPED “RLS#2053” IN THE CENTER OF A STATION CAMP CREEK TRIBUTARY, SAID IRON ROD BEING

THE NORTHEAST CORNER OF SAID FRANKLIN, ETAL, THE NORTHWEST CORNER OF THE FC STATION

PROPERTIES, LLC PROPERTY OF RECORD IN RECORD BOOK 5975, PAGE 128, R.O.S.C.T. AND THE

NORTHEAST CORNER OF THE HEREIN DESCRIBED TRACT;

THENCE, LEAVING THE SOUTH LINE OF SAID HOLLINS, WITH THE WESTERLY LINE OF SAID FC STATION

PROPERTIES, GENERALLY WITH THE CENTER OF THE CREEK, THE FOLLOWING NINETEEN (19) CALLS:

1. SOUTH 14 DEGREES 11 MINUTES 39 SECONDS WEST, 75.06 FEET;

2. SOUTH 21 DEGREES 39 MINUTES 11 SECONDS WEST, 46.05 FEET;

3. SOUTH 30 DEGREES 29 MINUTES 33 SECONDS WEST, 185.28 FEET;

4. SOUTH 04 DEGREES 29 MINUTES 17 SECONDS WEST, 229.22 FEET;

5. SOUTH 30 DEGREES 24 MINUTES 43 SECONDS WEST, 32.86 FEET;

6. SOUTH 76 DEGREES 12 MINUTES 29 SECONDS WEST, 35.44 FEET;

7. SOUTH 30 DEGREES 35 MINUTES 49 SECONDS WEST, 38.92 FEET;

8. SOUTH 05 DEGREES 30 MINUTES 21 SECONDS EAST, 58.10 FEET;

9. SOUTH 43 DEGREES 26 MINUTES 41 SECONDS EAST, 40.79 FEET;

10. SOUTH 09 DEGREES 47 MINUTES 01 SECONDS WEST, 48.88 FEET;

11. SOUTH 66 DEGREES 00 MINUTES 16 SECONDS WEST, 17.37 FEET;

12. NORTH 69 DEGREES 48 MINUTES 27 SECONDS WEST, 49.72 FEET;

13. SOUTH 35 DEGREES 23 MINUTES 28 SECONDS WEST, 23.54 FEET;

14. SOUTH 20 DEGREES 50 MINUTES 48 SECONDS EAST, 56.51 FEET;

15. SOUTH 13 DEGREES 07 MINUTES 42 SECONDS WEST, 112.97 FEET;

16. SOUTH 56 DEGREES 37 MINUTES 53 SECONDS WEST, 49.43 FEET;

17. SOUTH 61 DEGREES 23 MINUTES 44 SECONDS WEST, 68.13 FEET;

18. SOUTH 89 DEGREES 26 MINUTES 30 SECONDS WEST, 32.14 FEET;

19. SOUTH 07 DEGREES 59 MINUTES 58 SECONDS WEST, 53.22 FEET;

THENCE, LEAVING THE CREEK, CONTINUING WITH THE WESTERLY LINE OF SAID FC STATION PROPERTIES,

SOUTH 53 DEGREES 43 MINUTES 52 SECONDS WEST, 74.90 FEET TO A 1/2-INCH IRON ROD (NEW) WITH CAP

STAMPED "RAGAN SMITH ASSOC", THE NORTHEAST CORNER OF THE FC STATION PROPERTIES, LLC

PROPERTY OF RECORD IN RECORD BOOK 5777, PAGE 764, R.O.S.C.T.;

THENCE, WITH THE NORTHERLY LINE OF SAID FC STATION PROPERTIES, LLC, IN PART, SOUTH 62 DEGREES

57 MINUTES 27 SECONDS WEST, 369.51 FEET TO A 1/2-INCH IRON ROD (NEW) WITH CAP STAMPED "RAGAN

SMITH ASSOC", THE SOUTHERNMOST CORNER OF THE HEREIN DESCRIBED TRACT;

THENCE, LEAVING THE NORTHERLY LINE OF SAID FC STATION PROPERTIES, LLC, WITH A NEW LINE

SEVERING SAID NANCY A. FRANKLIN, ETAL PROPERTY THE FOLLOWING THREE (3) CALLS:

1. NORTH 23 DEGREES 34 MINUTES 41 SECONDS WEST, 271.57 FEET TO A 1/2-INCH IRON ROD (NEW)

WITH CAP STAMPED "RAGAN SMITH ASSOC";

2. NORTH 22 DEGREES 12 MINUTES 55 SECONDS WEST, 330.85 FEET TO A 1/2-INCH IRON ROD (NEW)

WITH CAP STAMPED "RAGAN SMITH ASSOC";

3. SOUTH 67 DEGREES 47 MINUTES 05 SECONDS WEST, 354.89 FEET TO A 1/2-INCH IRON ROD (NEW)

WITH CAP STAMPED "RAGAN SMITH ASSOC" IN THE EASTERLY RIGHT-OF-WAY OF SAID BIG STATION

CAMP BOULEVARD;

THENCE, WITH THE EASTERLY RIGHT-OF-WAY OF SAID BIG STATION CAMP BOULEVARD, NORTH 22

DEGREES 10 MINUTES 57 SECONDS WEST, 75.00 FEET TO A 1/2-INCH IRON ROD (NEW) WITH CAP STAMPED

"RAGAN SMITH ASSOC";

THENCE, LEAVING THE EASTERLY RIGHT-OF-WAY OF SAID BIG STATION CAMP BOULEVARD, WITH A NEW

LINE SEVERING SAID NANCY A. FRANKLIN, ETAL PROPERTY THE FOLLOWING SEVEN (7) CALLS:

1. NORTH 67 DEGREES 47 MINUTES 05 SECONDS EAST, 354.85 FEET TO A 1/2-INCH IRON ROD (NEW)

WITH CAP STAMPED "RAGAN SMITH ASSOC";

2. NORTH 22 DEGREES 12 MINUTES 55 SECONDS WEST, 127.28 FEET TO A 1/2-INCH IRON ROD (NEW)

WITH CAP STAMPED "RAGAN SMITH ASSOC";

3. NORTH 22 DEGREES 20 MINUTES 00 SECONDS WEST, 99.81 FEET TO A 1/2-INCH IRON ROD (NEW) WITH

CAP STAMPED "RAGAN SMITH ASSOC";

4. NORTH 23 DEGREES 11 MINUTES 55 SECONDS WEST, 235.64 FEET TO A 1/2-INCH IRON ROD (NEW)

WITH CAP STAMPED "RAGAN SMITH ASSOC";

5. NORTH 26 DEGREES 23 MINUTES 04 SECONDS WEST, 70.75 FEET TO A 1/2-INCH IRON ROD (NEW) WITH

CAP STAMPED "RAGAN SMITH ASSOC";

6. NORTH 28 DEGREES 11 MINUTES 29 SECONDS WEST, 70.78 FEET TO A 1/2-INCH IRON ROD (NEW) WITH

CAP STAMPED "RAGAN SMITH ASSOC";

7. NORTH 30 DEGREES 37 MINUTES 07 SECONDS WEST, 145.38 FEET TO THE POINT OF BEGINNING,

CONTAINING 1,066,852 SQUARE FEET OR 24.49 ACRES, MORE OR LESS.

BEING A PORTION OF THE SAME PROPERTY CONVEYED TO NANCY A. FRANKLIN, ETAL FROM JOHN S.

FRANKLIN BY SPECIAL WARRANTY DEED OF RECORD IN RECORD BOOK 4560, PAGE 664, REGISTER'S

OFFICE FOR SUMNER COUNTY, TENNESSEE.

BEING A PORTION OF THE SAME PROPERTY REFERENCED IN MEMORANDUM OF PURCHASE AND SALE

AGREEMENT BETWEEN NANCY C. FRANKLIN, ETAL AND FC STATION PROPERTIES, LLC OF RECORD IN

RECORD BOOK 5975, PAGE 120, REGISTER'S OFFICE FOR SUMNER COUNTY, TENNESSEE.

EXHIBIT 'B'

The rezoning shall be substantially consistent with the Amended Preliminary Master Development Plan for The Crossings at Hidden Creek, Phases 1 and 2, on five parcels totaling 120.50 +/- acres, consisting of a:

- Twenty-one (21) sheet plan, prepared by Gamble Design Collaborative of Franklin, TN, dated August 5, 2024, and
- Pattern Book for The Crossings at Hidden Creek, consisting of 24 pages, prepared by Gamble Design Collaborative and Kimley-Horn, stamped date received August 5, 2024,
  with the following conditions:

  1. Revise the alley-loaded townhomes to have 15' wide front yards and 20' rear yards on all exhibits and in all site data tables.
  2. Include the missing drainage and utility sheets for Phase 1 in this Amended PMDP packet.
  3. Add the following note: "Driveways on corner Lots must meet spacing per the Gallatin on the Move! 2020 General Development and Transportation Plan Chapter 4: Access Management Policies."
  4. Submit revised digital files consisting of the PDF and AutoCAD (dwg.) drawings of the PMDP to the Planning Department addressing all condition of approval.

CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

AUGUST 13, 2024

DEPARTMENT: PLANNING DEPARTMENT AGENDA #

SUBJECT:
An Ordinance No. O24Ø8-40 of the City of Gallatin, Sumner County, Tennessee, rezoning 24.49 +/- acres from the PGC-Planning General Commercial District to the MRO-Multiple Residential and Office District and with an Amended Preliminary Master Development Plan for The Crossings at Hidden Creek, Phases 1 and 2.

SUMMARY:
An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 24.49 +/- acres from the PGC-Planning General Commercial District to the MRO-Multiple Residential and Office District and with an Amended Preliminary Master Development Plan for The Crossings at Hidden Creek, Phases 1 and 2, on five parcels, totaling 120.50 +/- acres, and containing 228 single-family detached residential lots, 224 multi-family (townhome) units, 144 stacked flats, and five (5) commercial lots/outparcels, located north of Highway 386 and east of Big Station Camp Boulevard; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:
On July 29, 2024, the Gallatin Municipal Planning Commission recommended approval of GMPC Resolution No. 2024-094 by a vote of 6-0 for the rezoning and the amended preliminary master development plan (ZONE-2024-0099).

ATTACHMENT:

☐ **Resolution** ☐ **Correspondence** ☐ **Bid Tabulation**
☒ **Ordinance** ☐ **Contract** ☐ **Other**

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. O24Ø8-41

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING 47.51 +/- ACRES FROM THE SP–SPECIFIC PLAN DISTRICT TO THE MRO (PUD)–MULTIPLE RESIDENTIAL AND OFFICE (PLANNED UNIT DEVELOPMENT) DISTRICT IN THE GREENSBORO VILLAGE PUD (TAX MAP 136, PARCEL 004.04), AND A PRELIMINARY MASTER DEVELOPMENT PLAN/PUD AMENDMENT FOR A MULTI-TENANT RETAIL DEVELOPMENT, TOTALING 56.47 +/- ACRES, LOCATED EAST OF GREENLEA BOULEVARD AND NORTH OF NASHVILLE PIKE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2024-0098).

WHEREAS, the owner of the property submitted a complete application to rezone 47.51 +/- acres with a Preliminary Master Development Plan for a Multi-Tenant Retail Development within the Greensboro Village PUD, located in the City of Gallatin, Tennessee; and

WHEREAS, the rezoning with preliminary master development plan conforms to the general plan of the area including the established General Urban Community Character Area and that the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the properties proposed for rezoning with preliminary master development plan have adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning with preliminary master development plan will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of GMPC Resolution No. 2024-095 for the proposed rezoning with Preliminary Master Development Plan; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone 47.51 +/- acres from the SP–Specific Plan District to the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District in the Greensboro Village PUD as described in Exhibit "A" with a Preliminary Master Development Plan, as described in Exhibit 'B'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: August 20, 2024

PASSED SECOND READING:

____
MAYOR PAIGE BROWN

ATTEST:

____
CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

____
SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Description of PMDP

EXHIBIT 'A'

Legal Description

A tract of land in the 4th District of Sumner County, Tennessee. Tract being a portion of the Green and Little LP tract as recorded in 3486, Page 212, Register's Office, Sumner County, Tennessee (RODC) also in Plat Book 27, Page 107, RODC. Tract being bounded on the north, south, and west by the Peyton Cemetery tract as recorded in Record Book 3486, Pages 212, RODC, also in Plat Book 27, Page 107, RODC, on the east by the Sumner County / Volunteer State tract as recorded in Deed Book 282, Page 187, RODC, on the south by the remainder of the Green and Little LP tract, and on the west by the Eastern Right of Way (ROW) of Greenlea Boulevard. Tract being described as follows:

Point of Commencement being the southwestern corner of the said Sumner County / Volunteer State tract and being on the northern ROW of US Route 31E; thence with the common line of the said Sumner County / Volunteer State tract North 31°45'38" West a distance of 405.56' to the Point of Beginning; thence with a new line South 48°44'23" West a distance of 1074.10' to a point; thence with the eastern ROW of Greenlea Boulevard North 58°07'11" West a distance of 250.02' to a point; thence with a curve turning to the right with an arc length of 784.29', with a radius of 767.00', with a chord bearing of North 28°49'34" West, with a chord length of 750.57' to a point; thence North 00°28'03" East a distance of 1,693.28' to a point; thence South 89°31'57" East a distance of 78.00' to a point, thence North 05°02'29" East a distance of 250.80' to a point; thence North 02°47'18" West a distance of 304.81' to a point; thence with the common line of the said Sumner County / Volunteer State tract South 24°28'30" East for a distance of 469.66' to a point; thence with the common line of said Peyton Cemetery tract North 89°32'31" West a distance of 72.41' to a point; thence South 02°13'45" West a distance of 55.53' to a point; thence South 89°32'31" East a distance of 909.10' to a point; thence South 34°26'57" East a distance of 1,016.50' to a point; thence South 31°45'38" East a distance of 210.90' to the Point of Beginning.

Having an area of 2,069,684 square feet or 47.515 Acres

EXHIBIT ‘B’

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for a Multi-tenant Retail Development, totaling 56.47 +/- acres, consisting of a 13-sheet plan, prepared by Site Incorporated, and nine (9) sheets of architectural elevations, with the following conditions:

1. Show a 10’ greenway trail from the Fire Hall property up to the new street that will align with Meramill Drive. It can be located directly fronting Nashville Pike and GreenLea Blvd or it can be located through the site as long as there are appropriate easements.
2. Previous SP plan showed multiple vehicular and pedestrian connections to the adjacent property. This PMDP does not show how this intention will be met. Lot 3 must show shared access points in the highlighted locations at a minimum, but more connections are encouraged.
3. Graphically show all improvements required by TIS.
4. Add the following note: "A Floodplain Development Permit is required for construction on this lot. This permit shall be filed with the City Floodplain Manager prior to issuance of LDP. Any changes required by the City Floodplain Manager shall be reflected on the ECP."
5. Show a phase line in-between Phase I and II to clearly delineate the phases.
6. Outparcels shall meet all City requirements, not limited to the Gallatin Zoning Ordinance.
7. There shall not be any impervious area or grading activity within the 60' buffer. The 60' buffer can be averaged down (not lower than 30') in some areas and compensated for to allow for the shown disturbance. Provide a stream buffer averaging visual on a separate sheet.
8. Label Rankin Branch.
9. During the FMDP and ECP reviews, provide a cut/fill balance for any proposed grading activities within the floodplain. This should include cross-sections, flood elevations, etc.
10. Label this stream per the HD.
11. Clarify what phases the Extended Detention basin provide water quality/detention applies to.
12. Revise the survey to not indicate any SP zoning across Nashville Pike.
13. Add a note that existing landscaping in bufferyard areas will be preserved where possible.
14. Ensure all landscaping near utilities and power lines adhere to GDE requirements.
15. Ensure all portions of the buildings do not exceed 35’ in height.
16. Indicate on Sheet 2 that Lot 3/Phase 2 is reserved for Future Commercial Development.
17. Any portions of the development to be located within or near a floodplain will require a Floodplain Development Permit and Elevation Certificates. The developer could also consider going through FEMA for a CLOM-R.
18. Submit a digital copy (PDF & DWG) of the Amended Preliminary Master Development Plan to the Planning Department.

CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

AUGUST 13, 2024

DEPARTMENT: **PLANNING DEPARTMENT** **AGENDA #**

SUBJECT:
An Ordinance No. O24Ø8-41 of the City of Gallatin, Sumner County, Tennessee, rezoning 47.51 +/- acres from the SP–Specific Plan District to the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District in the Greensboro Village PUD (Tax Map 136, Parcel 004.04), and approval of a Preliminary Master Development Plan/PUD Amendment for a multi-tenant retail development.

SUMMARY:
An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 47.51 +/- acres from the SP–Specific Plan District to the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District in the Greensboro Village PUD (Tax Map 136, Parcel 004.04), and approval of a Preliminary Master Development Plan/PUD Amendment for a multi-tenant retail development, totaling 56.47 +/- acres, located east of Greenlea Boulevard and north of Nashville Pike; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:
On July 29, 2024, the Gallatin Municipal Planning Commission recommended approval of GMPC Resolution No. 2024-095 by a vote of 6-0 for the rezoning and the preliminary master development plan (ZONE-2024-0098).

ATTACHMENT:

☐ **Resolution**	☐ **Correspondence**	☐ **Bid Tabulation**
☒ **Ordinance**	☐ **Contract**	☐ **Other**

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. O24Ø8-44

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 0.286 +/- ACRE LOT (TAX MAP 113O, GROUP N, PARCEL 002.05) FROM THE R-10 MEDIUM DENSITY RESIDENTIAL ZONE DISTRICT TO THE R-6 HIGH DENSITY RESIDENTIAL ZONE DISTRICT, LOCATED SOUTH OF WEST EASTLAND AVENUE AND EAST OF PAFFORD PLACE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2024-0096).

WHEREAS, the owner of the property submitted a complete application to rezone a 0.286 +/- acre lot, located in the City of Gallatin, Tennessee; and

WHEREAS, the rezoning conforms to the general plan of the area including the established Downtown Core Community Character Area and that the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of GMPC Resolution No. 2024-096 for the proposed rezoning; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone a 0.286 +/- acre lot from the R-10 Medium Density Residential Zone District to the R-6 High Density Residential Zone District as described in Exhibit "A"

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: August 20, 2024

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

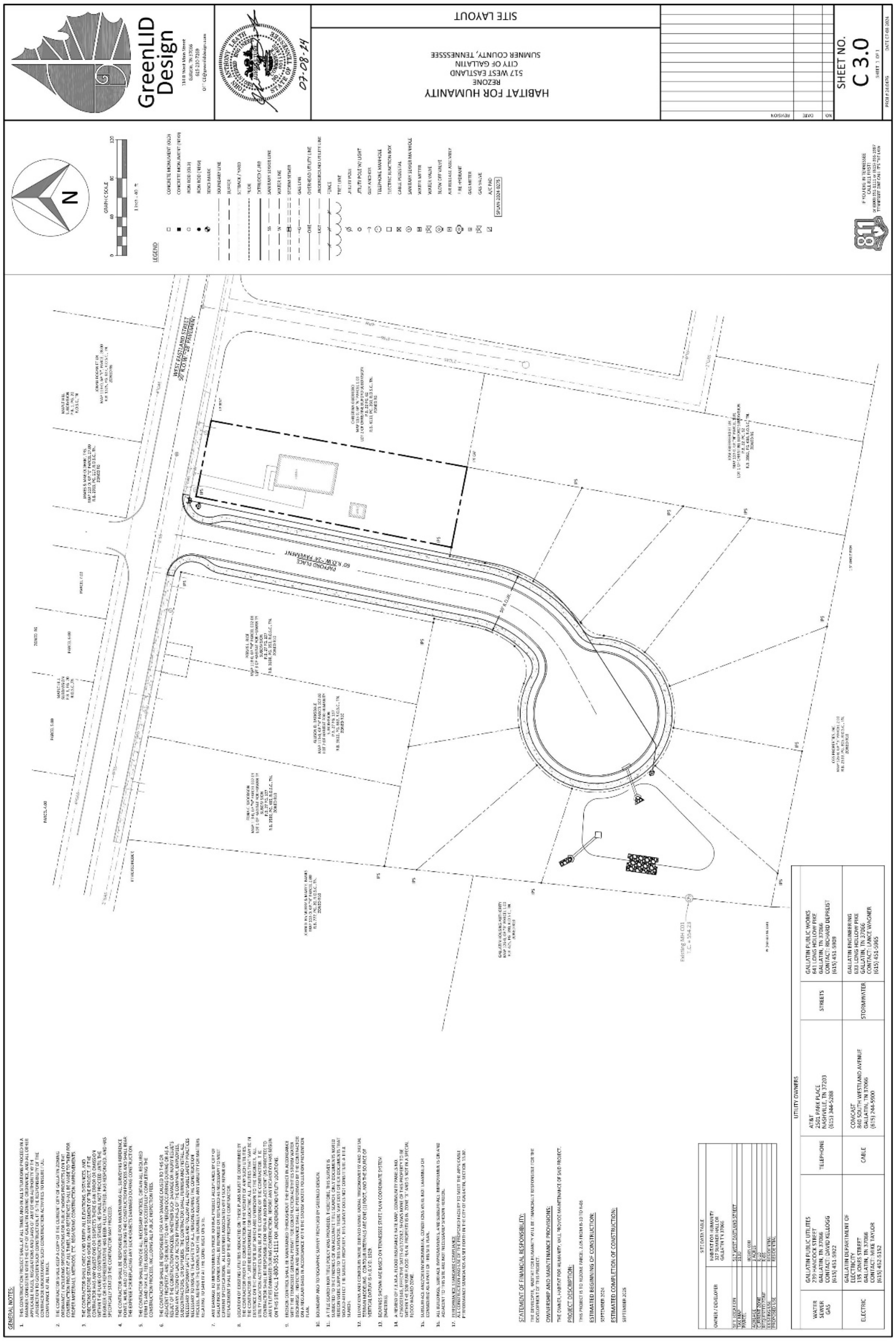
Exhibit A: Legal Description
Exhibit B: Boundary Survey

EXHIBIT 'A'

LEGAL BOUNDARY DESCRIPTION

LAND in Sumner County, Tennessee, being Lot No. 5 on the plan of HABITAT FOR HUMANITY SUBDIVISION, as shown by plat of record in Plat Book 27, Page 137, in the Register's Office for Sumner County, Tennessee, to which plat reference is hereby made for a more complete description.

EXHIBIT ‘B’



GreenLID Design
HABITAT FOR HUMANITY
REZONE
517 WEST EASTLAND
CITY OF GALLATIN
SUMNER COUNTY, TENNESSEE
SITE LAYOUT
SHEET NO.
C 3.0
03-08-24
GENERAL NOTES:
STATEMENT OF FINANCIAL RESPONSIBILITY:
OWNERSHIP AND MAINTENANCE PROVISIONS:
PROJECT DESCRIPTION:
ESTIMATED BEGINNING OF CONSTRUCTION:
ESTIMATED COMPLETION OF CONSTRUCTION:
UTILITY OWNERS
TELEPHONE
CABLE
STREETS
STORMWATER
WATER
SEWER
GAS
ELECTRIC
LEGEND
GRAPHIC SCALE

CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

August 13, 2024

DEPARTMENT: **PLANNING DEPARTMENT** **AGENDA #**

SUBJECT:
An Ordinance No. O24Ø8-44 of the City of Gallatin, Sumner County, Tennessee, rezoning a 0.286 +/- acre lot (Tax Map 113O, Group N, Parcel 002.05), located south of West Eastland Avenue and east of Pafford Place.

SUMMARY:
AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 0.286 +/- ACRE LOT (TAX MAP 113O, GROUP N, PARCEL 002.05) FROM THE R-10 MEDIUM DENSITY RESIDENTIAL ZONE DISTRICT TO THE R-6 HIGH DENSITY RESIDENTIAL ZONE DISTRICT, LOCATED SOUTH OF WEST EASTLAND AVENUE AND EAST OF PAFFORD PLACE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

RECOMMENDATION:
On July 29, 2024, the Gallatin Municipal Planning Commission recommended approval by vote of 6-0 of the rezoning in GMPC Resolution No. 2024-096 (ZONE-2024-0096).

ATTACHMENT:

☐ **Resolution**	☐ **Correspondence**	☐ **Bid Tabulation**
☒ **Ordinance**	☐ **Contract**	☒ **Other**

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. O24Ø8-48

ORDINANCE APPROPRIATING $380,000 FROM THE GENERAL FUND UNASSIGNED FUND BALANCE TO THE POLICE DEPARTMENT GUN RANGE CONSTRUCTION PROJECT

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of $380,000 is hereby appropriated from the General Fund Unassigned Fund Balance to account 110-43000-922-204 (Fire/Police Industrial Park Facility); and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: September 3, 2024.

PASSED SECOND READING:

____
MAYOR PAIGE BROWN

ATTEST:

____
CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

____
SUSAN HIGH-MCAULEY
CITY ATTORNEY

CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

August 27, 2024

DEPARTMENT: **EDA & POLICE** **AGENDA #**

SUBJECT:
ORDINANCE NO. O24Ø8-48 APPROPRIATING $380,000 FROM THE GENERAL FUND UNASSIGNED FUND BALANCE TO THE POLICE DEPARTMENT GUN RANGE CONSTRUCTION PROJECT

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☐ **Resolution**	☐ **Correspondence**	☐ **Bid Tabulation**
☒ **Ordinance**	☐ **Contract**	☐ **Other**

Approved ______
Rejected ______
Deferred ______

Notes:

ORDINANCE NO. O24Ø8-49

ORDINANCE APPROPRIATING $9831.75 FOR REPAIRS TO ENVIRONMENTAL SERVICES VEHICLES

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of $9831.75 is hereby appropriated from account #125-36350, Insurance Recoveries, to account #125-43230-262, Environmental Services Vehicle Repairs; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

____
MAYOR PAIGE BROWN

ATTEST:

____
CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

____
SUSAN HIGH-MCAULEY
CITY ATTORNEY

CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

SEPTEMBER 10, 2024

DEPARTMENT: **Public Works** **AGENDA #**

SUBJECT:
Appropriation of $9831.75 from Insurance Recovery Account to Environmental Services account 125-43230-262 for the repairs to Environmental Services vehiclesr

SUMMARY:
This appropriation is for the Repair of (2) Environmental Service Vehicles which sustained damge in motor vehicle accidents

RECOMMENDATION:

ATTACHMENT:

☐ **Resolution** ☐ **Correspondence** ☐ **Bid Tabulation**
☒ **Ordinance** ☐ **Contract** ☐ **Other**

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. O24Ø9-5Ø

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 3.62 +/- ACRE LOT (TAX MAP 112, PARCEL 038.00) FROM THE A-AGRICULTURAL RESIDENTIAL ZONE DISTRICT TO THE R-15 MEDIUM DENSITY RESIDENTIAL ZONE DISTRICT, LOCATED NORTH OF HARTSVILLE PIKE AND EAST OF ENOCH WAY; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2024-0102).

WHEREAS, the owner of the property submitted a complete application to rezone a 3.62 +/- acre lot, located in the City of Gallatin, Tennessee; and

WHEREAS, the rezoning conforms to the general plan of the area including the established General Urban Community Character Area and that the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of GMPC Resolution No. 2024-116 for the proposed rezoning; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone a 3.62 +/- acre lot from the A-Agricultural Residential Zone District to the R-15 Medium Density Residential Zone District as described in Exhibit “A”

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Boundary Survey

EXHIBIT 'A'

LEGAL BOUNDARY DESCRIPTION

SITUATED in Gallatin, Sumner County, Tennessee, on the north side of Hartsville Pike approximately 420' east of intersection with Enoch Way;

BEING a portion of the HML Holdings, LLC property of RB 5985 PG 305 R.O.S.C.TN; also known as Parcel 038.00 of Tax Map 112 of the Sumner County Tax Assessor, being more particularly described as follows:

BEGINNING at an Existing Iron Pin (910), said pin being the southeast corner of Henry Holleman ETUX (RB 4058 PG 289), also shown as Open Space B of the Enoch Hills Subdivision Phase 1, Sections 1&2 of record in PB 29, PG 289, located in the northern right of way of Hartsville Pike approximately 61.5' from the centerline, being the TRUE POINT OF BEGINNING,

THENCE with Holleman the following calls;

N 09°18'10" W a DISTANCE of 619.83' to a metal post flagged in creek;

S 83°16'40" E a DISTANCE of 319.62' to an Existing Iron Pin (910) being the northeast corner of subject property & the northwest corner of Christy Alpaben property of record in RB 5757, PG 427;

THENCE with Alpaben S 08°13'33" E a DISTANCE of 419.89' to an IPS in the right of way of Hartsville Pike (60' from centerline);

THENCE along the right of way S 60°13'07" W a DISTANCE of 319.50' to the TRUE POINT OF TRUE BEGINNING;

Above description contains 3.62 Acres (157,593 Square Feet).

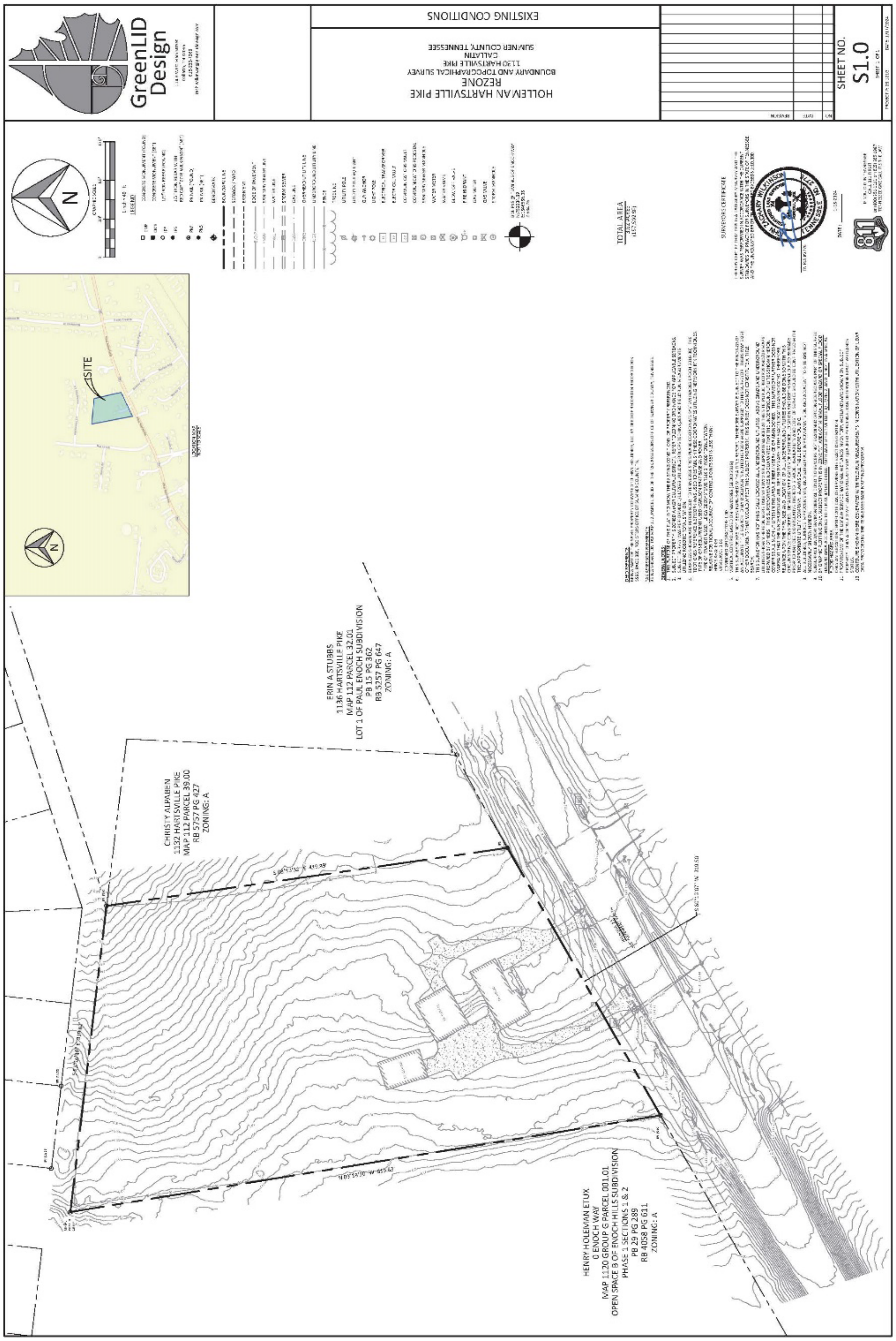
Bearings based on Tennessee State Plane (NAD 83) through the Tennessee Geodetic Reference Network.

All "IPS" are ½' iron rebar pins with a red cap marked "Wilkinson RLS 2776" set as part of this survey.

A boundary description of this size falls under the definition of a subdivision per T.C.A §§ 13-3-301 and 13-3-401 and therefore may be subject to penalty as identified in respective chapters. The use of this legal description is to be used only for purposes consistent and/or compatible with state and local law in regards to the transfer of property.

This description was prepared by GreenLID Design, 114 B West Main Street, Gallatin, TN 37066; based on survey performed on 1/11/2024, GreenLID job number 23.121G, and certified by John Zachary Wilkinson, TN RLS # 2776.

EXHIBIT 'B'


GreenLID Design
HOLLEMAN HARTSVILLE PIKE
REZONE
BOUNDARY AND TOPOGRAPHICAL SURVEY
1120 HARTSVILLE PIKE
GALLATIN
SUMNER COUNTY, TENNESSEE
EXISTING CONDITIONS
SHEET NO.
S1.0
SITE
TOTAL AREA
ERIN A STUBBS
1136 HARTSVILLE PIKE
MAP 112 PARCEL 32.01
LOT 1 OF PAUL ENOCH SUBDIVISION
ZONING: A
CHRISTY ALPABEN
1132 HARTSVILLE PIKE
MAP 112 PARCEL 39.00
ZONING: A
HENRY HOLEMAN ETUX
0 ENOCH WAY
OPEN SPACE B OF ENOCH HILLS SUBDIVISION
PHASE 1 SECTIONS 1 & 2
ZONING: A

CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

September 10, 2024

DEPARTMENT: PLANNING DEPARTMENT AGENDA #

SUBJECT:
An Ordinance No. O24Ø9-5Ø of the City of Gallatin, Sumner County, Tennessee, rezoning a 3.62 +/- acre lot (Tax Map 112, Parcel 038.00), located north of Hartsville Pike and east of Enoch Way.

SUMMARY:
AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 3.62 +/- ACRE LOT (TAX MAP 112, PARCEL 038.00) FROM THE A-AGRICULTURAL RESIDENTIAL ZONE DISTRICT TO THE R-15 MEDIUM DENSITY RESIDENTIAL ZONE DISTRICT, LOCATED NORTH OF HARTSVILLE PIKE AND EAST OF ENOCH WAY; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

RECOMMENDATION:
On August 26, 2024, the Gallatin Municipal Planning Commission recommended approval by a vote of 6-0 of the rezoning in GMPC Resolution No. 2024-116 (ZONE-2024-0102).

ATTACHMENT:

☐ **Resolution**	☐ **Correspondence**	☐ **Bid Tabulation**
☒ **Ordinance**	☐ **Contract**	☒ **Other**

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. O24Ø9-51

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 3.69 +/- ACRE LOT (TAX MAP 125M, GROUP A, PARCEL 001.11) FROM THE CS - COMMERCIAL SERVICES DISTRICT, MU - MIXED USE DISTRICT AND CG - COMMERCIAL GENERAL DISTRICT TO THE CG - COMMERCIAL GENERAL DISTRICT, LOCATED NORTH OF TULIP POPLAR DRIVE AND WEST OF WARWICK ROAD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2024-0103).

WHEREAS, the owner of the property submitted a complete application to rezone a 3.69 +/- acre lot, located in the City of Gallatin, Tennessee; and

WHEREAS, the rezoning conforms to the general plan of the area including the established General Urban Community Character Area and that the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of GMPC Resolution No. 2024-115 for the proposed rezoning; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone a 3.69 +/- acre lot from the CS - Commercial Services, MU-Mixed Use and CG-Commercial General Zone Districts to the CG – Commercial General Zoning District as described in Exhibit "A"

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

____
MAYOR PAIGE BROWN

ATTEST:

____
CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

____
SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Boundary Survey

EXHIBIT ‘A’

LEGAL BOUNDARY DESCRIPTION

Legal Description

A certain tract of land lying in Sumner County, Tennessee, being located in the city of Gallatin on the north west side of Tulip Poplar Drive; being all of Lot 2 of the Vintage Bakers Crossing Subdivision as previously recorded in Plat Book 33 Page 265 (Summerlin Development, LLC.; Deed Book 5753 Page 510), and being more particularly described as follows:

The basis of the bearings for this legal description is grid north as established by Tennessee State Plane Coordinates, Zone 4100. All iron pins set are ½”x18” iron pins with 1” yellow plastic cap stamped

“J. Arnold RLS 2526”.

Beginning at a magnail set in the north west right of way of Tulip Poplar Drive (62’ r/w per pb 33 pg 265), being a common corner with Lot 7 of the Bakers Crossing Subdivision as previously recorded in Plat Book 27 Page 196 (Jerrold D. Pedgo; Deed Book 3625 Page 373), being the eastern most corner of the parent tract, and being set approximately 397’ as measured along the centerline of Tulip Poplar Drive from the centerline of Warwick Road.

Thence, leaving the line of Lot 7 and with the right of way of Tulip Poplar Drive, the following three calls, with a curve turning to the right, with a radius of 730.50’, with an arc length of 140.47’, with a chord bearing of S 38°09’07” W, with a chord length of 140.25’ to an iron pin set.

Thence, S 43°39’46” W a distance of 181.57’ to an iron pin set.

Thence, with a curve turning to the left, with a radius of 834.78’, with an arc length of 132.08’, with a chord bearing of S 39°07’41” W, with a chord distance of 131.94’ to a ½” iron pin w/ 1” illegible plastic cap found, said pin being a common corner with Lot 1 of the Vintage Bakers Crossing Subdivision as previously recorded in Plat Book 33 Page 265 (Vintage Bakers

Crossing Owner, LLC.; Deed Book 5596 Page 9), and being the southern most corner of the parent tract.

Thence, leaving the right of way of Tulip Poplar Drive and with the line of Lot 1, N 54°02’44” W a distance of 387.91’ to a ½” iron pin w/ 1” plastic cap stamped W&M 3099” found S 58°14’35” W – 6.11’ from a 5/8” iron pin w/ 1 ¼” plastic cap stamped “Mr. Williams 1906” found, both pins found in the western most corner of the property and being in the southern right of way of CSX Railroad (66’ r/w per pb 33 pg 265).

Thence, leaving the line of Lot 1 and with the right of way of the CSX Railroad, a curve turning to the left, with a radius of 2,918.47’, with an arc length of 458.11’, with a chord bearing of N 47°04’51” E, with a chord length of 457.64’ to a 5/8” iron pin w/ 1 ¼” plastic cap stamped “CCPC 2351” found in the northern most corner of the property, being a common corner with the aforementioned Lot 7.

Thence, leaving the right of way of CSX Railroad and with the line of Lot 7, S 54°31’04” E a distance of 336.64’ to the point of **Beginning**, containing 160,865 +/- square feet (3.69 acres) as surveyed by Arnold Consulting Engineering Services, Inc., Jeff Arnold RLS 2526, completed on May 14, 2024.

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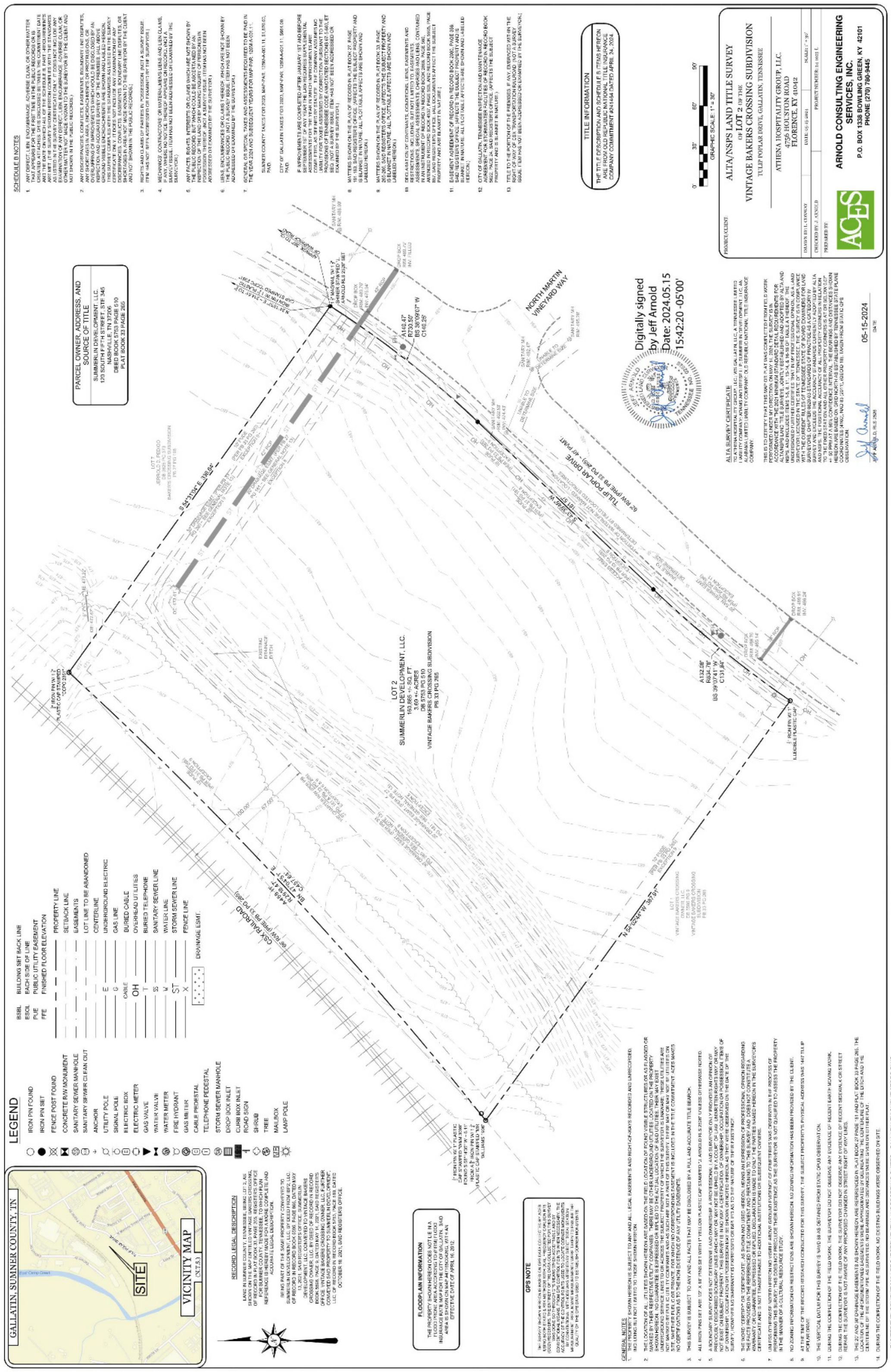
EXHIBIT 'B'



CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

September 10, 2024

DEPARTMENT: **PLANNING DEPARTMENT** **AGENDA #**

SUBJECT:
An Ordinance No. O2409-51 of the City of Gallatin, Sumner County, Tennessee, rezoning a 3.69 +/- acre lot (Tax Map 125M, Group A Parcel 001.11), located north of Tulip Poplar Drive and west of Warwick Road.

SUMMARY:
AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 3.69 +/- ACRE LOT, (TAX MAP 125M, GROUP A, PARCEL 001.11) FROM THE CS - COMMERCIAL SERVICES DISTRICT, MU - MIXED USE DISTRICT AND CG - COMMERCIAL GENERAL DISTRICT TO THE CG - COMMERCIAL GENERAL DISTRICT, LOCATED NORTH OF TULIP POPLAR DRIVE AND WEST OF WARWICK ROAD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

RECOMMENDATION:
On August 26, 2024, the Gallatin Municipal Planning Commission recommended approval by vote of 6-0 of the rezoning in GMPC Resolution No. 2024-115 (ZONE-2024-0103).

ATTACHMENT:

☐ **Resolution**	☐ **Correspondence**	☐ **Bid Tabulation**
☒ **Ordinance**	☐ **Contract**	☒ **Other**

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING FUNDS FOR
2024 CARRYOVER CAPITAL PROJECTS

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of $5,540,344.80 is hereby appropriated from the general fund unassigned fund balance for the following carryover projects that were incomplete at the end of FY2024:

11041310-937-290, Clearview Park Improvements, 1,862,262

11041670-912, Site Development (Franklin House), 90,570.00

11041670-923, Paving Rehab Program, 158,625.65

11041670-931, Roads, 100,000.00

11041670-931-73, S Water Ave (Maple to Smith) Resurface/Widen, 219,948.00

11041670-931-151, SR-174 & Belvedere Turn Lane Add (PE & ROW), 68,786.00

11041670-931-201, Guardrail Installation/Repair, 28,426.00

11041670-931-229, Greenway - Lock 4 Trail, 66,448.00

110-33190-229, , Greenway - Lock 4 Trail, (53,158.40)

11041670-931-262, Bakers Crossing Home Depot, 78,291.00

11041670-931-275, S Water Ave (Airport to Bush) Reconstruction , 219,948.00

11041670-931-276, Blythe Avenue Resurface/Widen, 1,920,000.00

11041670-931-278, Greenway - Vol State-Gap Trail Ph 1, 990,016.00

110-33450-278, Greenway - Vol State-Gap Trail Ph 1, (940,515.20)

11041670-931-285, Gallatin Citywide Sidewalk Improvements Ph 2, 179,000.00

110-33190-285, Gallatin Citywide Sidewalk Improvements Ph 2, (143,200.00)

11041670-931-286, Greenway - Kennesaw Trail Ph 1, 549,921.25

11043160-926-288, Gallatin Various Intersection Improvements Grant, 505,743.06

110-33190-288, Gallatin Various Intersection Improvements Grant, (424,867.44)

11043160-931-6, Various Intersection Improvements, 480,479.17

11043160-931-216, Traffic Signal Timing and Coordination & ITS Grant - Ph 1, 209,231.14

110-33190-216, Traffic Signal Timing and Coordination & ITS Grant - Ph 1, (258,404.49)

11043160-931-216.2, Traffic Signal Timing and Coordination & ITS Grant ,1,032,198.15

110-33190-216.2, Traffic Signal Timing and Coordination & ITS Grant, (1,528,817.18)

11043160-941, Transportation Equipment, 5,315.58

11041800-828, City Hall renovations, 1,705.00

11041800-921, Office Buildings, 14,035.00

11041800-939, Other Improvements, 47,115.00

11041800-949, Other Machinery and Equipment2,785.00

11043000-912, Site Development, 150,000.00

11043000-931-271, Enlow Street lot, 3,782.00

11043000-939-328, Sealing/Striping PW facility, 18,463.00

11043120-941, Transportation Equipment, 4,650.00

110-33110-320, CDBG grant, (1,284,814.49)

11047200-929-320, CDBG Daycare, $1,166,378; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of $2,057,636 is hereby appropriated from the stormwater fund unassigned fund balance for the following carryover projects from FY2024:

12343150-934-330, Woodvale Timberwood drainage, 175,000

12343800-320, Stormwater Operating Supplies, 6,530

12343800-934, Stormwater Infrastructure, 362,106

12343800-934-41, Town Creek Section 205 USACOE, 374,000

12343800-934-43, Anthony St to Center St Drainage, 500,000

12343800-934-249, S Water and E Winchester Culverts,6140,000; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of $5,029.77 is hereby appropriated from the environmental service fund unassigned fund balance to 12543230-941-282, Environmental Service automated garbage truck, for carryover projects from FY2024; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of $1,804,652 is hereby appropriated from the water/sewer fund unassigned fund balance for the following carryover projects that were incomplete at the end of FY2024:

41352114-934, Water Lines, 633,591

41352114-941, General Equipment, 105,754

41352114-942, General Machinery, 20,842

41352117-921, Office Building (ADA), 75,000

41352117-922, Operational Building, 34,594

41352211-934-261, Basin A Equalization Basin, 354,179

41352211-934-47, Rankin Branch Pump Station, 90,000

41352211-942, Sewer General Equipment, 375,000

41352213-942, Sewer General Machinery and Equipment, 115,692; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of $1,400,780.13 is hereby appropriated from the gas fund unassigned fund balance to account for the following carryover projects that were incomplete at the end of FY2024:

41552414-934-310, West Loop Gas Line, 694,735

41552414-934-388, Gas Line construction 706,045.13; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: ____________________

PASSED SECOND READING: __________________.

____
MAYOR PAIGE BROWN

ATTEST: APPROVED AS TO FORM:

____
CONNIE KITTRELL
CITY RECORDER

____
SUSAN HIGH-MCAULEY
CITY ATTORNEY

CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

9/10/2024

DEPARTMENT: **Finance** **AGENDA # 4**

SUBJECT:
Carryover ordinance for projects started in 2024 but incomplete at the end of the fiscal year

SUMMARY:
Carryover ordinance appropriating funds for projects started in 2024 but incomplete at the end of the fiscal year

RECOMMENDATION:
approval

ATTACHMENT:

- [ ] **Resolution**
- [x] **Ordinance**
- [ ] **Correspondence**
- [ ] **Contract**
- [ ] **Bid Tabulation**
- [ ] **Other**

- [x] **Approved**
- [ ] **Rejected**
- [ ] **Deferred**

Notes:

RESOLUTION NO. R24Ø9-76

A RESOLUTION AUTHORIZING THE ISSUANCE OF NOT TO EXCEED $12,200,000 IN AGGREGATE PRINCIPAL AMOUNT OF ELECTRIC SYSTEM REVENUE BONDS, SERIES 2024 OF THE CITY OF GALLATIN, TENNESSEE; MAKING PROVISION FOR THE ISSUANCE, SALE AND PAYMENT OF SAID BONDS; ESTABLISHING THE TERMS THEREOF AND THE DISPOSITION OF PROCEEDS THEREFROM; PROVIDING FOR THE COLLECTION AND DISPOSITION OF REVENUES FROM THE ELECTRICAL POWER DISTRIBUTION SYSTEM OF THE MUNICIPALITY; AND MAKING PROVISION FOR THE OPERATION OF SAID SYSTEM.

WHEREAS, the City of Gallatin, Tennessee (the "Municipality") owns and operates, through the Gallatin Department of Electricity (the "Board"), an electrical power transmission and distribution system (the "System");

WHEREAS, the Board has recommended that the Municipality issue electric system revenue bonds and use the proceeds to (i) finance improvements and extensions to the System as more fully described herein (the "Project"), (ii) fund a debt service reserve fund, if necessary, and (iii) pay the costs of issuing the bonds; and the City Council of the Municipality believes it to be necessary and advisable and in the public interest to do so; and

WHEREAS, said bonds will not be general obligations of the Municipality and bondholders will have no recourse to the Municipality's power of taxation, but instead, said bonds will be payable from and secured solely by the revenues of the System; and

WHEREAS, it is the intention of the City Council of the Municipality to adopt this resolution for the purpose of authorizing not to exceed $12,200,000 in aggregate principal amount of electric system revenue bonds for the purposes described above; establishing the terms of the bonds; and providing for the issuance, sale and payment of said bonds, the disposition of proceeds therefrom, and the collection of revenues from the System and the application thereof to the payment of principal of, premium, if any, and interest on said bonds;

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Gallatin, Tennessee, as follows:

ARTICLE I.
DEFINITIONS

The following terms shall have the following meanings in this resolution unless the text expressly or by necessary implication requires otherwise:

"<u>Acquired System</u>" shall mean any electrical power generation, transmission and/or distribution system acquired by the Municipality or the Board and/or any such facilities hereafter constructed or otherwise established by the Municipality or the Board pursuant to the Act.

"<u>Act</u>" shall mean Sections 7-34-101 <u>et seq</u>., Tennessee Code Annotated.

"<u>Balloon Indebtedness</u>" shall mean any bonds, notes or other indebtedness, other than Short-Term Indebtedness, 25% or more of the initial principal amount of which matures (or must be redeemed at the option of the holder) during any twelve month period, if such 25% or more is not to be amortized to below 25% by mandatory redemption prior to the beginning of such twelve month period.

"Board" shall have the meaning ascribed in the preamble.

"Bond Fund" shall mean the Series 2024 Principal and Interest Sinking Fund established pursuant to Section 6.1(b) hereof.

"Bonds" means the Series 2024 Bonds and any Parity Bonds.

"Book-Entry Form" or "Book-Entry System" means a form or system, as applicable, under which physical bond certificates in fully registered form are issued to a Depository, or to its nominee as registered owner, with the certificate of bonds being held by and "immobilized" in the custody of such Depository, and under which records maintained by persons, other than the Municipality, the Board or the Registration Agent, constitute the written record that identifies, and records the transfer of, the beneficial "book-entry" interests in those bonds.

"Capital Appreciation Bonds" shall mean bonds which bear interest at a stated interest rate of 0.0% per annum, have a value on any applicable date equal to the Compound Accreted Value thereof on that date, and are payable only at maturity or earlier redemption.

"Code" means the Internal Revenue Code of 1986, as amended, and any lawful regulations promulgated or proposed thereunder.

"Compound Accreted Value" shall mean the value at any applicable date of any Capital Appreciation Bonds computed as the original principal amount thereof for each maturity date plus an amount equal to interest on said principal amount (computed on the basis of a 360-day year of twelve 30-day months) compounded semiannually on such dates as shall be established by the resolution authorizing Capital Appreciation Bonds, from the dated date to said applicable date at an interest rate which will produce at maturity the Maturity Amount for such maturity date.

"Construction Fund" means the Series 2024 Construction Fund established pursuant to Article XI of this resolution.

"Consulting Engineer" means (i) an engineering firm or individual engineer employed by the Board with substantial experience in advising municipal electric power systems as to the construction and maintenance of such systems and in the projection of costs of expansion of such systems or (ii) an engineer or engineers who are employees of the Board whose reports or projections are certified by a Municipal Advisor.

"Credit Facility" means any municipal bond insurance policy, letter of credit, surety bond, line of credit, guarantee, or other agreement under which any person other than the Municipality or the Board provides additional security for any Bonds and guarantees timely payment of or purchase price equal to the principal of and interest on all or a portion of any Bond and shall include any Reserve Fund Credit Facility.

"Debt Service Requirement" means the total principal, Maturity Amounts and interest coming due, whether at maturity or upon mandatory redemption (less any amount of interest that is capitalized and payable with the proceeds of debt on deposit with the Municipality or the Board or any paying agent for the Bonds or other obligations of the Municipality or the Board payable from all or some portion of Gross Earnings), for any period of 12 consecutive calendar months for which such a determination is made, provided:

(a) The Debt Service Requirement with respect to Variable Rate Indebtedness shall be determined as if the variable rate in effect at all times during future periods equaled, at the option of the Board, either (A) the average of the actual variable rate which was in effect (weighted according to the length of the period during which each such variable rate was in effect) for the most recent 12-month period immediately preceding the date of calculation for which such information is available (or shorter period if such information is not available for a 12-month period), or (B) the current average annual fixed rate of interest on securities of similar quality having a similar maturity date, as certified by a Municipal Advisor.

(b) For the purpose of calculating the Debt Service Requirement on Balloon Indebtedness and Short-Term Indebtedness, at the option of the Board, (i) the actual principal and interest on such Balloon Indebtedness and Short Term Indebtedness shall be included in the Debt Service Requirement, subject to the other assumptions contained herein, or (ii) such Balloon Indebtedness and Short Term Indebtedness shall be assumed to be amortized in substantially equal annual amounts to be paid for principal and interest over an assumed amortization period of 20 years at an assumed interest rate (which shall be the interest rate certified by a Municipal Advisor to be the interest rate at which the Municipality could reasonably expect to borrow the same amount by issuing bonds with the same priority of lien as such Balloon Indebtedness and Short Term Indebtedness and with a 20-year term); provided, however, that if the maturity of such Balloon Indebtedness is in excess of 20 years from the date of issuance, then such Balloon Indebtedness shall be assumed to be amortized in substantially equal annual amounts to be paid for principal and interest over an assumed amortization period of years equal to the number of years from the date of issuance of such Balloon Indebtedness to maturity and at the interest rate applicable to such Balloon Indebtedness; provided further that this paragraph shall not be applicable for purposes of determining the Debt Service Requirement for purposes of Section 7.4 of this resolution unless the Municipality or the Board has a written commitment from a bank, underwriting firm or other financial institution to refinance at least 90% of the principal amount of such Balloon Indebtedness or Short-Term Indebtedness coming due in the relevant Fiscal Year.

"Defeasance Obligations" shall mean direct obligations of, or obligations, the principal of and interest on which are guaranteed by, the United States of America, which bonds or other obligations shall not be subject to redemption prior to their maturity other than at the option of the registered owner thereof.

"Depository" means any securities depository that is a clearing agency under federal laws operating and maintaining, with its participants or otherwise, a Book-Entry System, including, but not limited to, DTC.

"DTC" means the Depository Trust Company, a limited purpose company organized under the laws of the State of New York, and its successors and assigns.

"DTC Participant(s)" means securities brokers and dealers, banks, trust companies and clearing corporations that have access to the DTC System.

"Financial Guaranty Agreement" shall mean any Financial Guaranty Agreement authorized herein to be executed in connection with a Reserve Fund Credit Facility.

"Fiscal Year" means the twelve-month period commencing July 1st of each year and ending June 30th of the following year.

"Fitch" means Fitch Ratings Inc.

"Governing Body" means the City Council of the Municipality.

"Gross Earnings" means all revenues, rentals, earnings and income of the System from whatever source, determined in accordance with generally accepted accounting principles; proceeds from the sale of System property; proceeds of System-related insurance and condemnation awards and compensation for damages, to the extent not applied to the payment of the cost of repairs, replacements and improvements; and all amounts realized from the investment of funds of the System, including money in any accounts and funds created by this resolution, and resolutions authorizing any Parity Bonds or subordinate lien bonds (excluding any investment earnings from construction or improvement funds created for the deposit of bond proceeds pending use, to the extent such income is applied to the purposes for which the bonds were issued, and funds created to defease any outstanding obligations of the System); provided, however, at the election of the Board, the term "Gross Earnings" as used herein shall not include any revenues, rentals, earnings or other income received from the operation of an Acquired System, and any bonds or other obligations issued in connection with such Acquired System shall not be payable from or secured by Net Revenues or be deemed to be Parity Bonds.

"Loan Agreement" shall mean any agreement or contract entered into by the Municipality or the Board whereby a third party agrees to advance funds to the Municipality or the Board and the Municipality or the Board agrees to repay those funds with interest from all or a portion of Gross Earnings.

"Maturity Amount" shall mean the Compound Accreted Value on the stated maturity date of a Capital Appreciation Bond.

"Maximum Annual Debt Service Requirement" means the maximum annual Debt Service Requirement for any Fiscal Year.

"Moody's" means Moody's Investors Service, Inc.

"Municipality" means the City of Gallatin, Tennessee.

"Municipal Advisor" means an investment banking or financial/municipal advisory firm, commercial bank, or any other person who or which is retained by the Municipality or the Board for the purpose of passing on questions relating to the availability and terms of specified types of debt obligations or the financial condition or operation of the System and is actively engaged in and, in the good faith opinion of the Board, has a favorable reputation for skill and experience in providing financial advisory services of the type with respect to which the Municipal Advisor has been retained. Without limiting the foregoing, with respect to the issuance of the Series 2024 Bonds, "Municipal Advisor" shall mean Oakdale Municipal Advisors, LLC.

"Net Revenues" shall mean (i) Gross Earnings, excluding any profits or losses on the sale or other disposition, not in the ordinary course of business, of investments or fixed or capital assets and further excluding non-cash items, such as, non-cash contributions in aid of construction, less (ii) Operating Expenses.

"Operating Expenses" means and shall include but not be limited to, expenses for ordinary repairs, removals and replacements of the System, salaries and wages, employees' health, hospitalization, pension and retirement expenses, fees for services, materials and supplies, rents, administrative and general expenses (including legal, engineering, accounting and financial advisory fees and expenses and costs of other consulting or technical services not funded with proceeds of bonds, notes or other debt obligations), insurance expenses, taxes and other governmental charges (except as set forth below), the imposition or amount of which is not subject to control of the Board, any payments made by the Board during any Fiscal Year to purchase electrical power for distribution and sale during or after the end of that Fiscal Year, and other payments made under any electrical power supply contract or commodity swap or other hedging mechanism, and any principal or interest payments made by the Board during any Fiscal Year on bonds, notes or other obligations, including loan agreements, issued or entered into for the purpose of financing the purchase of electrical power, and to the extent so provided by the resolution authorizing such bonds, notes or obligations and to the extent not inconsistent with generally accepted accounting principles. Operating Expenses do not include payments in lieu of taxes to the Municipality, depreciation or obsolescence charges or reserves therefore, amortization of intangibles or other bookkeeping entries of a similar nature, on bonds, notes or other debt obligations of the System payable from Net Revenues of the System, costs or charges made therefor, capital additions, replacements, betterments, extensions or improvements to or retirement from the System which under generally accepted accounting principles are properly chargeable to the capital account or the reserve for depreciation, and do not include losses from the sale, abandonment, reclassification, revaluation or other disposition of any properties of the System, nor such property items, including taxes and fuels, which are capitalized pursuant to the then existing accounting practices of the Board or expenses of an Acquired System if revenues of the Acquired System are not included in Gross Earnings at the election of the Board.

"Parity Bonds" means bonds, notes, Loan Agreements, and other debt obligations, including Balloon Indebtedness, Short-Term Indebtedness and Variable Rate Indebtedness, issued or entered into by the Municipality or the Board on a parity with the Series 2024 Bonds herein authorized in accordance with the restrictive provisions of Article IX hereof, including any bonds or other obligations secured by a pledge of and/or lien on an Acquired System and the revenues derived from the operation of such Acquired System (provided such pledge and lien are subject only to normal and customary expenses of operating, maintaining, repairing and insuring any such System), so long as the Acquired System is not being operated separately from the System as is permitted herein or the revenues from such Acquired System are not excluded from Gross Earnings.

"Project" means extensions and improvements to the System, the acquisition of all property real or personal appurtenant thereto, and the payment of legal, fiscal, engineering, architectural and administrative fees in connection therewith.

"Rate Covenant Requirement" means an amount of Net Revenues which is equal to the sum of: (a) 120% of the Debt Service Requirement for the forthcoming Fiscal Year plus (b) 100% of (i) the amounts, if any, required by the Resolution to be deposited by the Issuer into the Reserve Fund during the forthcoming Fiscal Year, and (ii) debt service payable on, or reserve fund funding requirements for, any subordinate lien indebtedness.

"Rating" means a rating in one of the categories by a Rating Agency, disregarding pluses, minuses, and numerical gradations.

"Rating Agencies" or "Rating Agency" means Moody's, S&P and Fitch, or any successors thereto and any other nationally recognized credit rating agency.

"Registration Agent" means the registration and paying agent to be determined by the Mayor, as registration and paying agent for the Bonds, or any successor designated by the Governing Body.

"Reserve Fund" shall mean the Series 2024 Debt Service Reserve Fund established pursuant to Section 6.1(d) hereof.

"Reserve Fund Credit Facility" means a municipal bond insurance policy, surety bond, letter of credit, line of credit, guarantee or other agreement provided by a Reserve Fund Credit Facility which provides for payment of amounts equal to all or any portion of the Reserve Fund Requirement in the event of an insufficiency of moneys in the Bond Fund to pay when due principal of and interest on all or a portion of the Bonds.

"Reserve Fund Credit Facility Issuer" means the issuer of a Reserve Fund Credit Facility that is, at the time such Reserve Fund Credit Facility is procured by the Issuer, assigned a financial strength rating of at least "AA-" by S&P, "Aa3" by Moody's or "AA-" by Fitch.

"Reserve Fund Requirement" means an amount determined from time to time by the Municipality as a reasonable reserve, if any, for the payment of principal of and interest on a series of Bonds pursuant, which shall be set forth in the supplemental resolution authorizing such Bonds. With respect to the Series 2024 Bonds authorized herein, the Reserve Fund Requirement shall be established by the Mayor of the Municipality and the Chairman of the Board pursuant to Article X hereof.

"Revenue Fund" shall have the meaning ascribed in Section 6.1 hereof.

"Series 2024 Bonds" means the electric system revenue bonds authorized to be issued by this resolution.

"Short-Term Indebtedness" means bonds, notes, Loan Agreements or other debt obligations, including Variable Rate Indebtedness, maturing five years or less from their date of issuance, issued by the Municipality or the Board as Parity Bonds in accordance with the restrictive provisions of Article IX hereof.

"State" means the State of Tennessee.

"System" means the electrical power distribution system operated by the Board, any electrical power distribution and/or transmission system hereafter acquired, constructed or otherwise established, including all improvements and extensions made by the Board while the Bonds remain outstanding, and including all real and personal property of every nature comprising part of or used or useful in connection with the foregoing, and including all appurtenances, contracts, leases, franchises, and other intangibles; provided, however, at the election of the Board, an Acquired System may be included within the System as defined herein and become a part thereof or, at the election of the Board, not become a part of the System but be operated as a separate and independent system by the Board with the continuing right, upon the election of the Board, to incorporate such separately Acquired System within the System.

"S&P" means S&P Global Ratings.

"Underwriter" means the underwriter for the Series 2024 Bonds selected by the Mayor or the Chairman of the Board in the manner required by Article X hereof.

"Variable Rate Indebtedness" means any Parity Bonds, the interest rate on which is subject to periodic adjustment, at intervals, at such times and in such manner as shall be determined by resolution authorizing such Parity Bonds; provided that if the interest rate shall have been fixed for the remainder of the term thereof, it shall no longer be Variable Rate Indebtedness.

ARTICLE II.
AUTHORIZATION AND TERMS OF THE SERIES 2024 BONDS

2.1 Purpose and Authorization. For the purpose of providing funds to (i) finance the cost of the Project, (ii) fund the Reserve Fund, if necessary, (iii) to pay capitalized interest on the Series 2024 Bonds during the period of construction of the Project and for up to six months thereafter, and (iv) pay costs incident to the issuance and sale of the Series 2024 Bonds, the Governing Body hereby authorizes the issuance of electric system revenue bonds of the Municipality. The Series 2024 Bonds authorized by this resolution are issued pursuant to the Act, other applicable provisions of law, and this resolution. The Act authorizes the Municipality to issue its revenue bonds for the purpose of financing the capital costs of electric plant improvements and to pledge its electric plant revenues to the payment of such bonds.

2.2 General Terms.

(a) The Series 2024 Bonds shall be issued in an aggregate principal amount not to exceed $12,200,000. The Series 2024 Bonds may be issued in one or more series.

(b) The Series 2024 Bonds shall be known as "Electric System Revenue Bonds, Series 2024".

(c) The Series 2024 Bonds shall be dated their delivery date.

(d) The Series 2024 Bonds shall be issued in fully registered, book-entry form, without coupons, in $5,000 denominations or integral multiples thereof as shall be requested by the Underwriter.

(e) The Series 2024 Bonds shall bear interest payable semi-annually on January 1 and July 1 of each year the Series 2024 Bonds are outstanding, commencing July 1, 2025, at an aggregate true interest rate not to exceed 6% per annum.

(f) The Series 2024 Bonds shall mature on each July 1, commencing no earlier than July 1, 2025 and ending no later than July 1, 2044, in such amounts as shall be established by the Mayor of the Municipality and the Chairman of the Board pursuant to Article X hereof.

2.3 Registration. The Mayor is authorized to appoint the Registration Agent. The Municipality hereby authorizes and directs the Registration Agent to maintain Series 2024 Bond registration records with respect to the Series 2024 Bonds, to authenticate and deliver the Series 2024 Bonds as provided herein, either at original issuance or upon transfer, to effect transfers of the Series 2024 Bonds, to give all notices of redemption as required herein, to make all payments of principal and interest with respect to the Series 2024 Bonds as provided herein, to cancel and destroy Series 2024 Bonds which have been paid at maturity or upon earlier redemption or submitted for exchange or transfer, to furnish the Municipality at least annually a certificate of destruction with respect to Series 2024 Bonds canceled and destroyed, and to furnish the Municipality at least annually an audit confirmation of Series 2024 Bonds paid, Series 2024 Bonds outstanding and payments made with respect to interest on the Series 2024 Bonds. The Mayor of the Municipality is hereby authorized to execute and the Recorder is hereby authorized to attest such written agreement between the Municipality and the Registration Agent as they shall deem necessary and proper with respect to the obligations, duties and rights of the Registration Agent. The payment of all reasonable fees and expenses of the Registration Agent for the discharge of its duties and obligations hereunder or under any such agreement is hereby authorized and directed.

2.4 Payment. The Series 2024 Bonds shall be payable, both principal and interest, in lawful money of the United States of America. The Registration Agent shall make all interest payments with respect to the Series 2024 Bonds by check or draft on each interest payment date directly to the registered owners as shown on the Series 2024 Bond registration records maintained by the Registration Agent as of the close of business on the fifteenth day of the month next preceding the interest payment date (the "Regular Record Date") by depositing said payment in the United States mail, postage prepaid, addressed to such owners at their addresses shown on said Series 2024 Bond registration records, without, except for final payment, the presentation or surrender of such registered Series 2024 Bonds, and all such payments shall discharge the obligations of the Municipality in respect of such Series 2024 Bonds to the extent of the payments so made. Payment of principal of and premium, if any, on the Series 2024 Bonds shall be made upon presentation and surrender of such Series 2024 Bonds to the Registration Agent as the same shall become due and payable. All rates of interest specified herein shall be computed on the basis of a 360 day year comprised of twelve months of 30 days each. If requested by any registered owner (including DTC) of at least $1,000,000 in aggregate principal amount of the Series 2024 Bonds, payment of interest on such Series 2024 Bonds shall be paid by wire transfer to a bank within the continental United States or deposited to a designated account if such account is maintained with the Registration Agent and written notice of any such election and designated account is given to the Registration Agent prior to the record date.

2.5 Defaulted Interest. Any interest on any Series 2024 Bond that is payable but is not punctually paid or duly provided for on any interest payment date (hereinafter "Defaulted Interest") shall forthwith cease to be payable to the registered owner on the relevant Regular Record Date; and, in lieu thereof, such Defaulted Interest shall be paid by the Municipality to the persons in whose names the Series 2024 Bonds are registered at the close of business on a date (the "Special Record Date") for the payment of such Defaulted Interest, which shall be fixed in the following manner: the Municipality shall notify the Registration Agent in writing of the amount of Defaulted Interest proposed to be paid on each Series 2024 Bond and the date of the proposed payment, and at the same time the Municipality shall deposit with the Registration Agent an amount of money equal to the aggregate amount proposed to be paid in respect of such Defaulted Interest or shall make arrangements satisfactory to the Registration Agent for such deposit prior to the date of the proposed payment, such money when deposited to be held in trust for the benefit of the persons entitled to such Defaulted Interest as in this Section provided. Thereupon, not less than ten days after the receipt by the Registration Agent of the notice of the proposed payment, the Registration Agent shall fix a Special Record Date for the payment of such Defaulted Interest which Date shall be not more than 15 nor less than ten days prior to the date of the proposed payment to the registered owners. The Registration Agent shall promptly notify the Municipality of such Special Record Date and, in the name and at the expense of the Municipality, not less than ten days prior to such Special Record Date, shall cause notice of the proposed payment of such Defaulted Interest and the Special Record Date therefor to be mailed, first class postage prepaid, to each registered owner at the address thereof as it appears in the Series 2024 Bond registration records maintained by the Registration Agent as of the date of such notice. Nothing contained in this Section or in the Series 2024 Bonds shall impair any statutory or other rights in law or in equity of any registered owner arising as a result of the failure of the Municipality to punctually pay or duly provide for the payment of principal of, premium, if any, and interest on the Series 2024 Bonds when due.

2.6 Transfer. The Series 2024 Bonds are transferable only by presentation to the Registration Agent by the registered owner, or his legal representative duly authorized in writing, of the registered Series 2024 Bond(s) to be transferred with the form of assignment on the reverse side thereof completed in full and signed with the name of the registered owner as it appears upon the face of the Series 2024 Bond(s) accompanied by appropriate documentation necessary to prove the legal capacity of any legal representative of the registered owner. Upon receipt of the Series 2024 Bond(s) in such form and with such documentation, if any, the Registration Agent shall issue a new Series 2024 Bond or the Series 2024 Bond to the assignee(s) in $5,000 denominations, or integral multiples thereof, as requested by the registered owner requesting transfer. The Registration Agent shall not be required to transfer or exchange any Series 2024 Bond during the period commencing on a Regular or Special Record Date and ending on the corresponding interest payment date of such Series 2024 Bond, nor to transfer or exchange any Series 2024 Bond after the publication of notice calling such Series 2024 Bond for redemption has been made, nor to transfer or exchange any Series 2024 Bond during the period following the receipt of instructions from the Municipality to call such Series 2024 Bond for redemption; provided, the Registration Agent, at its option, may make transfers after any of said dates. The person in whose name any Series 2024 Bond shall be registered shall be deemed and regarded as the absolute owner thereof for all purposes and neither the Municipality nor the Registration Agent shall be affected by any notice to the contrary whether or not any payments due on the Series 2024 Bonds shall be overdue. The Series 2024 Bonds, upon surrender to the

Registration Agent, may, at the option of the registered owner, be exchanged for an equal aggregate principal amount of the Series 2024 Bonds of the same maturity in any authorized denomination or denominations. No charge shall be made to any registered owner for the privilege of transferring or exchanging any Series 2024 Bond, provided that any transfer tax relating to such transaction shall be paid by the registered owner requesting transfer.

2.7 Execution. The Series 2024 Bonds shall be executed in such manner as may be prescribed by applicable law, in the name, and on behalf, of the Municipality with the manual or facsimile signature of the Mayor and attested by the manual or facsimile signature of the City Recorder.

2.8 Book-Entry Provisions. Notwithstanding anything contained herein to the contrary, the Series 2024 Bonds shall be registered in the name of Cede & Co., as nominee of DTC, which will act as securities depository for the Bonds. References in this Section to a Series 2024 Bond or the Series 2024 Bonds shall be construed to mean the Series 2024 Bond or the Series 2024 Bonds that are held under the Book-Entry System. One Series 2024 Bond for each maturity shall be issued to DTC and immobilized in its custody. A Book-Entry System shall be employed, evidencing ownership of the Series 2024 Bonds in authorized denominations, with transfers of beneficial ownership effected on the records of DTC and the DTC Participants pursuant to rules and procedures established by DTC.

Each DTC Participant shall be credited in the records of DTC with the amount of such DTC Participant's interest in the Series 2024 Bonds. Beneficial ownership interests in the Series 2024 Bonds may be purchased by or through DTC Participants. The holders of these beneficial ownership interests are hereinafter referred to as the "Beneficial Owners." The Beneficial Owners shall not receive the Series 2024 Bonds representing their beneficial ownership interests. The ownership interests of each Beneficial Owner shall be recorded through the records of the DTC Participant from which such Beneficial Owner purchased its Series 2024 Bonds. Transfers of ownership interests in the Series 2024 Bonds shall be accomplished by book entries made by DTC and, in turn, by DTC Participants acting on behalf of Beneficial Owners. SO LONG AS CEDE & CO., AS NOMINEE FOR DTC, IS THE REGISTERED OWNER OF THE SERIES 2024 BONDS, THE REGISTRATION AGENT SHALL TREAT CEDE & CO., AS THE ONLY HOLDER OF THE BONDS FOR ALL PURPOSES UNDER THIS RESOLUTION, INCLUDING RECEIPT OF ALL PRINCIPAL OF, PREMIUM, IF ANY, AND INTEREST ON THE SERIES 2024 BONDS, RECEIPT OF NOTICES, VOTING AND REQUESTING OR DIRECTING THE REGISTRATION AGENT TO TAKE OR NOT TO TAKE, OR CONSENTING TO, CERTAIN ACTIONS UNDER THIS SERIES 2024 RESOLUTION.

Payments of principal, interest, and redemption premium, if any, with respect to the Series 2024 Bonds, so long as DTC is the only owner of the Series 2024 Bonds, shall be paid by the Registration Agent directly to DTC or its nominee, Cede & Co. as provided in the Letter of Representation relating to the Municipality (the "Letter of Representation"). DTC shall remit such payments to DTC Participants, and such payments thereafter shall be paid by DTC Participants to the Beneficial Owners. The Municipality and the Registration Agent shall not be responsible or liable for payment by DTC or DTC Participants, for sending transaction statements or for maintaining, supervising or reviewing records maintained by DTC or DTC Participants.

In the event that (1) DTC determines not to continue to act as securities depository for the Series 2024 Bonds or (2) the Municipality determines that the continuation of the Book-Entry System of evidence and transfer of ownership of the Series 2024 Bonds would adversely affect its interests or the interests of the Beneficial Owners of the Series 2024 Bonds, the Municipality shall discontinue the Book-Entry System with DTC. If the Municipality fails to identify another qualified securities depository to replace DTC, the Municipality shall cause the Registration Agent to authenticate and deliver replacement Series 2024 Bonds in the form of fully registered Series 2024 Bonds to each Beneficial Owner.

THE MUNICIPALITY AND THE REGISTRATION AGENT SHALL NOT HAVE ANY RESPONSIBILITY OR OBLIGATIONS TO ANY DTC PARTICIPANT OR ANY BENEFICIAL OWNER WITH RESPECT TO (i) THE SERIES 2024 BONDS; (ii) THE ACCURACY OF ANY RECORDS MAINTAINED BY DTC OR ANY DTC PARTICIPANT; (iii) THE PAYMENT BY DTC OR ANY DTC PARTICIPANT OF ANY AMOUNT DUE TO ANY BENEFICIAL OWNER IN RESPECT OF THE PRINCIPAL OF AND INTEREST ON THE SERIES 2024 BONDS; (iv) THE DELIVERY OR TIMELINESS OF DELIVERY BY DTC OR ANY DTC PARTICIPANT OF ANY NOTICE DUE TO ANY BENEFICIAL OWNER THAT IS REQUIRED OR PERMITTED UNDER THE TERMS OF THIS RESOLUTION TO BE GIVEN TO BENEFICIAL OWNERS, (v) THE SELECTION OF BENEFICIAL OWNERS TO RECEIVE PAYMENTS IN THE EVENT OF ANY PARTIAL REDEMPTION OF THE SERIES 2024 BONDS; OR (vi) ANY CONSENT GIVEN OR OTHER ACTION TAKEN BY DTC, OR ITS NOMINEE, CEDE & CO., AS OWNER.

The Registration Agent is hereby authorized to take such action as may be necessary from time to time to qualify and maintain the Series 2024 Bonds for deposit with DTC, including but not limited to, wire transfers of interest and principal payments with respect to the Series 2024 Bonds, utilization of electronic book entry data received from DTC in place of actual delivery of Series 2024 Bonds and provision of notices with respect to Series 2024 Bonds registered by DTC (or any of its designees identified to the Registration Agent) by overnight delivery, courier service, telegram, telecopy or other similar means of communication. No such arrangements with DTC may adversely affect the interest of any of the owners of the Series 2024 Bonds, provided, however, that the Registration Agent shall not be liable with respect to any such arrangements it may make pursuant to this section.

2.9 Authentication and Delivery. The Registration Agent is hereby authorized to authenticate and deliver the Series 2024 Bonds to the Original Purchaser, upon receipt by the Municipality of the proceeds of the sale thereof and to authenticate and deliver Series 2024 Bonds in exchange for Series 2024 Bonds of the same principal amount delivered for transfer upon receipt of the Series 2024 Bond(s) to be transferred in proper form with proper documentation as hereinabove described. The Series 2024 Bonds shall not be valid for any purpose unless authenticated by the Registration Agent by the manual signature of an officer thereof on the certificate set forth herein on the Series 2024 Bond form.

2.10 Lost and Stolen Bonds. In case any Series 2024 Bond shall become mutilated, or be lost, stolen, or destroyed, the Municipality, in its discretion, shall issue, and the Registration Agent, upon written direction from the Municipality, shall authenticate and deliver, a new Series 2024 Bond of like tenor, amount, maturity and date, in exchange and substitution for, and upon the cancellation of, the mutilated Series 2024 Bond, or in lieu of and in substitution for such lost, stolen or destroyed Series 2024 Bond, or if any such Series 2024 Bond shall have matured or shall be about to mature, instead of issuing a substituted Series 2024 Bond the Municipality may pay or authorize payment of such Series 2024 Bond without surrender thereof. In every case the applicant shall furnish evidence satisfactory to the Municipality and the Registration Agent of destruction, theft or loss of such Series 2024 Bond, and indemnity satisfactory to the Municipality and the Registration Agent; and the Municipality may charge the applicant for the issue of such new Series 2024 Bond an amount sufficient to reimburse the Municipality for the expense incurred by it in the issue thereof.

ARTICLE III.
REDEMPTION

3.1 Optional Redemption. The Series 2024 Bonds maturing on or before July 1, 2034 shall not be subject to optional redemption. The Series 2024 Bonds maturing on or after July 1, 2035 shall be subject to redemption at the option of the Board at any time on or after July 1, 2034, in whole or part, at price of par plus interest accrued to the redemption date. If less than all the Series 2024 Bonds shall be called for redemption, the maturities to be redeemed shall be selected by the Board in its discretion. If less than all of the Series 2024 Bonds within a single maturity shall be called for redemption, the Bonds within the maturity to be redeemed shall be selected as follows:

(a) if the Series 2024 Bonds are being held under a Book-Entry System by DTC, or a successor Depository, the Series 2024 Bonds to be redeemed shall be determined by DTC, or such successor Depository, by lot or such other manner as DTC, or such successor Depository, shall determine; or

(b) if the Series 2024 Bonds are not being held under a Book-Entry System by DTC, or a successor Depository, the Series 2024 Bonds within the maturity to be redeemed shall be selected by the Registration Agent by lot or such other random manner as the Registration Agent in its discretion shall determine.

3.2 Mandatory Redemption. Pursuant to Article X hereof, the Mayor of the Municipality and the Chairman of the Board, are authorized to sell the Series 2024 Bonds, or any maturities thereof, as term bonds with mandatory redemption requirements corresponding to the maturities set forth herein or as determined by the Mayor of the Municipality and the Chairman of the Board. In the event any or all the Series 2024 Bonds are sold as term bonds, the Municipality shall redeem term bonds on redemption dates corresponding to the maturity dates set forth herein, in aggregate principal amounts equal to the maturity amounts set forth herein for each redemption date, as such maturity amounts may be adjusted pursuant to Article X hereof, at a price of par plus accrued interest thereon to the date of redemption. The term bonds to be so redeemed shall be selected in the manner described in subsection (b) above.

At its option, to be exercised on or before the 45th day next preceding any such mandatory redemption date, the Municipality or the Board may (i) deliver to the Registration Agent for cancellation Series 2024 Bonds to be redeemed, in any aggregate principal amount the desired, and/or (ii) receive a credit in respect of its redemption obligation under this mandatory redemption provision for any Series 2024 Bonds of the maturity to be redeemed which prior to said date have been purchased or redeemed (otherwise than through the operation of this mandatory sinking fund redemption provision) and canceled by the Registration Agent and not theretofore applied as a credit against any redemption obligation under this mandatory sinking fund provision. Each Series 2024 Bond so delivered or previously purchased or redeemed shall be credited by the Registration Agent at 100% of the principal amount thereof on the obligation of the Municipality on such payment date and any excess shall be credited on future redemption obligations in chronological order, and the principal amount of Series 2024 Bonds to be redeemed by operation of this mandatory sinking fund provision shall be accordingly reduced. The Municipality shall on or before the 45th day next preceding each payment date furnish the Registration Agent with its certificate indicating whether or not and to what extent the provisions of clauses (i) and (ii) of this subsection are to be availed of with respect to such payment and confirm that funds for the balance of the next succeeding prescribed payment will be paid on or before the next succeeding payment date.

3.3 Redemption Notice. Notice of any call for redemption shall be given by the Registration Agent on behalf of the Municipality not less than twenty (20) nor more than sixty (60) days prior to the date fixed for redemption by sending an appropriate notice to the registered owners of the Bonds to be redeemed by first-class mail, postage prepaid, at the addresses shown on the Bond registration records of the Registration Agent as of the date of the notice; but neither failure to mail such notice nor any defect in any such notice so mailed shall affect the sufficiency of the proceedings for redemption of any of the Bonds for which proper notice was given. The notice may state that it is conditioned upon the deposit of moneys in an amount equal to the amount necessary to effect the redemption with the Registration Agent no later than the redemption date ("Conditional Redemption"). As long as DTC, or a successor Depository, is the registered owner of the Bonds, all redemption notices shall be mailed by the Registration Agent to DTC, or such successor Depository, as the registered owner of the Bonds, as and when above provided, and neither the Municipality nor the Registration Agent shall be responsible for mailing notices of redemption to DTC Participants or Beneficial Owners. Failure of DTC, or any successor Depository, to provide notice to any DTC Participant or Beneficial Owner will not affect the validity of such redemption. The Registration Agent shall mail said notices as and when directed by the Municipality pursuant to written instructions from an authorized representative of the Municipality (other than for a mandatory sinking fund redemption, notices of which shall be given on the dates provided herein) given at least forty-five (45) days prior to the redemption date (unless a shorter notice period shall be satisfactory to the Registration Agent). From and after the redemption date, all Bonds called for redemption shall cease to bear interest if funds are available at the office of the Registration Agent for the payment thereof and if notice has been duly provided as set forth herein. In the case of a Conditional Redemption, the failure of the Municipality to make funds available in part or in whole on or before the redemption date shall not constitute an event of default, and the Registration Agent shall give immediate notice to the Depository, if applicable, or the affected Bondholders that the redemption did not occur and that the Bonds called for redemption and not so paid remain outstanding.

ARTICLE IV.
SOURCE OF PAYMENT AND SECURITY

The Series 2024 Bonds shall be payable solely from and secured by a pledge of the Net Revenues. The punctual payment of principal of and premium, if any, and interest on the Series 2024 Bonds shall be secured equally and ratably by the Net Revenues without priority by reason of series, number or time of sale or delivery. The Net Revenues are hereby irrevocably pledged to the punctual payment of such principal, premium, if any, and interest as the same become due. The Series 2024 Bonds do not constitute a debt of the State of Tennessee or the City of Gallatin (other than with respect to the Net Revenues).

ARTICLE V.
FORM OF SERIES 2024 BONDS

The Series 2024 Bonds shall be in substantially the following form, the omissions to be appropriately completed when the Series 2024 Bonds are prepared and delivered:

REGISTERED REGISTERED

Number ___ $__________

UNITED STATES OF AMERICA

STATE OF TENNESSEE
COUNTY OF SUMNER
CITY OF GALLATIN, TENNESSEE
ELECTRIC SYSTEM REVENUE BOND, SERIES 2024

Interest Rate: Maturity Date: Date of Bond: CUSIP No.:

Registered Owner:

Principal Amount:

KNOW ALL MEN BY THESE PRESENTS: That the City of Gallatin, Tennessee, duly incorporated pursuant to the laws of the State of Tennessee (the "Municipality"), for value received hereby promises to pay to the registered owner hereof, hereinabove named, or registered assigns, in the manner hereinafter provided, the principal amount hereinabove set forth on the maturity date hereinabove set forth, and to pay interest (computed on the basis of a 360-day year of twelve 30-day months) on said principal amount at the annual rate of interest hereinabove set forth from the date hereof until said maturity date, said interest being payable on July 1, 2025, and semi-annually thereafter on the first day of January and July in each year until this Bond matures or is redeemed. Both principal hereof and interest hereon are payable in lawful money of the United States of America at the corporate trust office of _____________, as registration agent and paying agent (the "Registration Agent"). The Registration Agent shall make all interest payments with respect to this Bond on each interest payment date to the registered owner hereof shown on the bond registration records maintained by the Registration Agent as of the close of business on the fifteenth day of the month next preceding the interest payment date (the "Regular Record Date") by check or draft mailed to such owner at such owner's address shown on said bond registration records (unless the registered owner is DTC, as defined herein, in which case payment shall be in accordance with the policies of DTC), without, except for final payment, the presentation or surrender of this Bond, and all such payments shall discharge the obligations of the Municipality to the extent of the payments so made. Any such interest not so punctually paid or duly provided for on any interest payment date shall forthwith cease to be payable to the registered owner on the relevant Regular Record Date; and, in lieu thereof, such defaulted interest shall be payable to the persons in whose name this Bond is registered at the close of business on the date (the "Special Record Date") for payment of such defaulted interest to be fixed by the Registration Agent, notice of which shall be given to the owners of the Bonds of the issue of which this Bond is one not less than ten days prior to such Special Record Date. Payment of principal of and premium, if any, on this Bond shall be made when due upon presentation and surrender of this Bond to the Registration Agent.

Notwithstanding anything herein or in the Resolution to the contrary, as hereinafter defined, this Bond shall be registered in the name of Cede & Co., as nominee of The Depository Trust Company, New York, New York ("DTC"), which will act as securities depository for the Bonds of the series of which this Bond is one. One Bond for each maturity of the Bonds shall be issued to DTC and immobilized in its custody. A book-entry system shall be employed, evidencing ownership of the Bonds in $5,000 denominations, or multiples thereof, with transfers of beneficial ownership effected on the records of DTC and the DTC Participants, as defined in the Resolution (as hereafter defined), pursuant to rules and procedures established by DTC. So long as Cede & Co., as nominee for DTC, is the registered owner of the Bonds, the Municipality and the Registration Agent shall treat Cede & Co., as the only owner of the Bonds for all purposes under the Resolution, including receipt of all principal and maturity amounts of, premium, if any, and interest on the Bonds, receipt of notices, voting and requesting or taking or not taking, or consenting to, certain actions hereunder. Payments of principal, maturity amounts, interest, and redemption premium, if any, with respect to the Bonds, so long as DTC is the only owner of the Bonds, shall be paid directly to DTC or its nominee, Cede & Co. DTC shall remit such payments to DTC Participants, and such payments thereafter shall be paid by DTC Participants to the Beneficial Owners, as defined in the Resolution. Neither the Municipality nor the Registration Agent shall be responsible or liable for payment by DTC or DTC Participants, for sending transaction statements or for maintaining, supervising or reviewing records maintained by DTC or DTC Participants. In the event that (1) DTC determines not to continue to act as securities depository for the Bonds or (2) the Municipality determines that the continuation of the book-entry system of evidence and transfer of ownership of the Bonds would adversely affect its interests or the interests of the Beneficial Owners of the Bonds, the Municipality may discontinue the book-entry system with DTC. If the Municipality fails to identify another qualified securities depository to replace DTC, the Municipality shall cause the Registration Agent to authenticate and deliver replacement Bonds in the form of fully registered Bonds to each Beneficial Owner. Neither the Municipality nor the Registration Agent shall have any responsibility or obligations to any DTC Participant or any Beneficial Owner with respect to (i) the Bonds; (ii) the accuracy of any records maintained by DTC or any DTC Participant; (iii) the payment by DTC or any DTC Participant of any amount due to any Beneficial Owner in respect of the principal or maturity amounts of and interest on the Bonds; (iv) the delivery or timeliness of delivery by DTC or any DTC Participant of any notice due to any Beneficial Owner that is required or permitted under the terms of the Resolution to be given to Beneficial Owners, (v) the selection of Beneficial Owners to receive payments in the event of any partial redemption of the Bonds; or (vi) any consent given or other action taken by DTC, or its nominee, Cede & Co., as owner.

This Bond is one of a total authorized issue aggregating $________ and issued by the Municipality for the purpose of providing funds to (i) construct improvements and extensions to the electric transmission and distribution system (the "System") operated on behalf of the Municipality by the Gallatin Utilities Board (the "Board"), [(ii) fund a debt service reserve fund,] [(iii) pay capitalized interest], and (iv) pay the costs of issuance of the Bonds, under and in full compliance with the constitution and statutes of the State of Tennessee, including Sections 7-34-101, et seq., Tennessee Code Annotated and pursuant to a resolution duly adopted by the City Council of the Municipality on __________, 2024 (the "Resolution").

This Bond is payable solely from and secured by a pledge of revenues to be derived from the operation of the System, subject to the payment of the reasonable and necessary costs of operating, maintaining, repairing and insuring the System. As provided in the Resolution, the punctual payment of principal of and interest on the series of the Bonds of which this Bond is one, and any other bonds hereafter issued on a parity therewith, shall be secured equally and ratably by said revenues without priority by reason of series, number or time of sale or delivery. Said revenues are required by law and by the proceedings pursuant to which this Bond is issued to be fully sufficient to pay the cost of operating, maintaining, repairing and insuring the System, including reserves therefor, and to pay principal of and interest on this Bond and the issue of which it is a part promptly as each becomes due and payable. The Board has covenanted and does hereby covenant that it will fix and impose such rates and charges for the services rendered by the System and will collect and account for sufficient revenues to pay promptly the principal of and interest on this Bond and the issue of which it is a part as each becomes due. This Bond and the interest hereon are payable solely from the revenues so pledged to the payment hereof, and this Bond does not constitute a debt of the Municipality within the meaning of any statutory limitation. For a more complete statement of the revenues from which and conditions under which this Bond is payable, a statement of the conditions on which obligations may hereafter be issued on a parity with this Bond, the general covenants and provisions pursuant to which this Bond is issued and the terms upon which the Resolution may be modified, reference is hereby made to the Resolution.

The Bonds of the issue of which this Bond is one shall be subject to redemption prior to maturity at the option of the Board on or after July 1, 2034 as a whole or in part at any time at the redemption price of par plus interest accrued to the redemption date. If less than all the Bonds shall be called for redemption, the maturities to be redeemed shall be designated by the Board, in its discretion. If less than all the principal amount of the Bonds of a maturity shall be called for redemption, the interests within the maturity to be redeemed shall be selected as follows:

(a) if the Bonds are being held under a Book-Entry System by DTC, or a successor Depository, the amount of the interest of each DTC Participant in the Bonds to be redeemed shall be determined by DTC, or such successor Depository, by lot or such other manner as DTC, or such successor Depository, shall determine; or

(b) if the Bonds are not being held under a Book-Entry System by DTC, or a successor Depository, the Bonds within the maturity to be redeemed shall be selected by the Registration Agent by lot or such other random manner as the Registration Agent in its discretion shall determine.

Subject to the credit hereinafter provided, the Municipality shall redeem Bonds maturing ______________ on the redemption dates set forth below opposite the maturity dates, in aggregate principal amounts equal to the respective dollar amounts set forth below opposite the respective redemption dates at a price of par plus accrued interest thereon to the date of redemption. DTC, as securities depository for the series of Bonds of which this Bond is one, or such Person as shall then be serving as the securities depository for the Bonds, shall determine the interest of each Participant in the Bonds to be redeemed using its procedures generally in use at that time. If DTC, or another securities depository is no longer serving as securities depository for the Bonds, the Bonds to be redeemed within a maturity shall be selected by the Registration Agent by lot or such other random manner as the Registration Agent in its discretion shall select. The dates of redemption and principal amount of Bonds to be redeemed on said dates are as follows:

Final Maturity	Redemption Date	Principal Amount of Bonds Redeemed

*Final Maturity

At its option, to be exercised on or before the forty-fifth (45th) day next preceding any such redemption date, the Municipality or the Board may (i) deliver to the Registration Agent for cancellation Bonds to be redeemed, in any aggregate principal amount desired, and/or (ii) receive a credit in respect of its redemption obligation under this mandatory redemption provision for any Bonds of the maturity to be redeemed which prior to said date have been purchased or redeemed (otherwise than through the operation of this mandatory sinking fund redemption provision) and canceled by the Registration Agent and not theretofore applied as a credit against any redemption obligation under this mandatory sinking fund provision. Each Bond so delivered or previously purchased or redeemed shall be credited by the Registration Agent at 100% of the principal amount thereof on the obligation of the Municipality on such payment date and any excess shall be credited on future redemption obligations in chronological order, and the principal amount of Bonds to be redeemed by operation of this mandatory sinking fund provision shall be accordingly reduced.

Notice of any call for redemption shall be given by the Registration Agent not less than twenty (20) nor more than sixty (60) days prior to the date fixed for redemption by sending an appropriate notice to the registered owners of the Bonds to be redeemed by first-class mail, postage prepaid, at the addresses shown on the Bond registration records of the Registration Agent as of the date of the notice; but neither failure to mail such notice nor any defect in any such notice so mailed shall affect the sufficiency of the proceedings for the redemption of any of the Bonds for which proper notice was given. The notice may state that it is conditioned upon the deposit of moneys in an amount equal to the amount necessary to effect the redemption with the Registration Agent no later than the redemption date ("Conditional Redemption"). As long as DTC, or a successor Depository, is the registered owner of the Bonds, all redemption notices shall be mailed by the Registration Agent to DTC, or such successor Depository, as the registered owner of the Bonds, as and when above provided, and neither the Municipality nor the Registration Agent shall be responsible for mailing notices of redemption to DTC Participants or Beneficial Owners. Failure of DTC, or any successor Depository, to provide notice to any DTC Participant will not affect the validity of such redemption. From and after any redemption date, all Bonds called for redemption shall cease to bear interest if funds are available at the office of the Registration Agent for the payment thereof and if notice has been duly provided as set forth in the Resolution, as hereafter defined. In the case of a Conditional Redemption, the failure of the Municipality to make funds available in part or in whole on or before the redemption date shall not constitute an event of default, and the Registration Agent shall give immediate notice to the Depository or the affected Bondholders that the redemption did not occur and that the Bond called for redemption and not so paid remains outstanding.

If this Bond is no longer registered in the name of Cede & Co. as nominee for DTC, this Bond is transferable by the registered owner hereof in person or by such owner's attorney duly authorized in writing at the principal corporate trust office of the Registration Agent set forth on the front side hereof, but only in the manner, subject to limitations and upon payment of the charges provided in the Resolution, as hereafter defined, and upon surrender and cancellation of this Bond. Upon such transfer a new Bond or Bonds of authorized denominations of the same maturity and interest rate for the same aggregate principal amount will be issued to the transferee in exchange therefor. The person in whose name this Bond is registered shall be deemed and regarded as the absolute owner thereof for all purposes and neither the Municipality nor the Registration Agent shall be affected by any notice to the contrary whether or not any payments due on the Bond shall be overdue. Bonds, upon surrender to the Registration Agent, may, at the option of the registered owner thereof, be exchanged for an equal aggregate principal amount of the Bonds of the same maturity in authorized denomination or denominations, upon the terms set forth in the Resolution. The Registration Agent shall not be required to transfer or exchange any Bond during the period commencing on a Regular Record Date or Special Record Date and ending on the corresponding interest payment date of such Bond, nor to transfer or exchange any Bond after the notice calling such Bond for redemption has been made, nor during a period following the receipt of instructions from the Municipality to call such Bond for redemption.

This Bond and the income therefrom are exempt from all present state, county and municipal taxes in Tennessee except (a) Tennessee excise taxes on interest on the Bond during the period the Bond is held or beneficially owned by any organization or entity, other than a sole proprietorship or general partnership, doing business in the State of Tennessee, and (b) Tennessee franchise taxes by reason of the inclusion of the book value of the Bonds in the Tennessee franchise tax base of any organization or entity, other than a sole proprietorship or general partnership, doing business in the State of Tennessee.

It is hereby certified, recited, and declared that all acts, conditions and things required to exist, happen and be performed precedent to and in the issuance of this Bond exist, have happened and have been performed in due time, form and manner as required by law, and that the amount of this Bond does not exceed any limitation prescribed by the constitution and statutes of the State of Tennessee.

IN WITNESS WHEREOF, the Municipality has caused this Bond to be signed by its Mayor and attested by its City Recorder under the corporate seal of the Municipality, all as of the date hereinabove set forth.

CITY OF GALLATIN, TENNESSEE

By: ____________________
Mayor

(SEAL)

ATTESTED:

____
City Recorder

Transferable and Payable at: ______________________________

Date of Registration: ____________________

This Bond is one of the issue of Bonds issued pursuant to the Resolution hereinabove described.

______________________________,
Registration Agent

By: __________________________
Authorized Officer

(FORM OF ASSIGNMENT)

FOR VALUE RECEIVED, the undersigned sells, assigns, and transfers unto ____________________, whose address is ________________________________ (Please insert Federal Identification or Social Security Number of Assignee ____________________), the within Bond of the City of Gallatin, Tennessee, and does hereby irrevocably constitute and appoint ________________________________, attorney, to transfer the said bond on the records kept for registration thereof with full power of substitution in the premises.

Dated: __________________________

____
Notice: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within bond in every particular, without enlargement or alteration, or any change whatsoever.

ARTICLE VI.
APPLICATION OF REVENUES

6.1 Application of Revenues. From and after the delivery of any of the Series 2024 Bonds hereunder, and as long as any of the Bonds shall be outstanding and unpaid either as to principal or as to interest, or until the discharge and satisfaction of all the Bonds, the Gross Earnings of the System shall be deposited as collected by the Board to the Revenue Fund hereby established (the "Revenue Fund"), administered and controlled by the Board. The funds so deposited in the Revenue Fund created under this Series 2024 Resolution shall be used only as follows:

(a) Operating Expenses. The money in the Revenue Fund shall be used first from month to month for the payment of Operating Expenses.

(b) Bond Fund. The money thereafter remaining in the Revenue Fund shall next be used to make deposits into a separate and special fund, to be known as the "Series 2024 Principal and Interest Sinking Fund" (the "Bond Fund") to be kept separate and apart from all other funds of the Board and used to pay principal of and interest on the Bonds as the same become due, either by maturity or mandatory redemption. Such deposits shall be made monthly until the Bonds are paid in full or discharged and satisfied pursuant to Article XII hereof, beginning in the month next following delivery of the Series 2024 Bonds.

For the period commencing with the month next following the delivery of any Bonds, to and including the month of the next interest payment date for such Bonds, each monthly deposit as to interest shall be an amount that, together with all other monthly deposits of approximately equal amounts during such period and amounts otherwise in said Fund, will be equal to interest due on such Bonds on the next interest payment date, and for each six month period thereafter, each monthly deposit as to interest for such Bonds shall be an equal to not less than one-sixth ($1/6^{th}$) of the interest coming due on such Bonds on the next interest payment date net of any interest earnings on such amounts.

For the period commencing with the month next following the delivery of any Bonds to and including the month of the next principal payment for such Bonds, each monthly deposit as to principal shall be an amount that, together with all other monthly deposits during such period and amounts otherwise in said Fund, will be equal to the principal due on such Bonds on the next principal payment date (provided that, in the event that the next principal payment date is more than 12 months following the month next following delivery of such Bonds, monthly deposits to the Bond Fund in respect of principal shall begin in the month which is 12 months prior to the month of the next principal payment date), and for each twelve-month period thereafter, each monthly deposit as to principal for such Bonds shall be an amount equal to not less than one-twelfth ($1/12^{th}$) of the principal amount or Maturity Amount, as the case may be, coming due on such Bonds, whether by maturity or mandatory redemption, on the next principal payment date net of any interest earnings on such amounts.

No further deposit shall be required as to any Bonds when the Bond Fund balance is equal to or greater than the amount needed to pay interest on the next interest payment date, the total of the principal amounts payable, either by maturity or mandatory redemption, during the applicable twelve-month period. Notwithstanding the foregoing, deposits for payment of interest and principal on Variable Rate Indebtedness shall be made as set forth in the resolution authorizing such Variable Rate Indebtedness, and if interest is not paid semi-annually and/or principal is not paid annually with respect to any Bonds, the deposits may be adjusted by the Municipality or the Board as provided in the resolution authorizing the issuance of such Bonds. Money in the Bond Fund shall be used and is hereby expressly pledged for the purpose of paying principal of and interest on the Bonds.

(c) Repayment of Reserve Fund Credit Facility Issuers. The next available money in the Revenue Fund shall be paid to any Reserve Fund Credit Facility Issuer or Issuers (pro rata, if more than one) to the extent needed to reimburse the Reserve Fund Credit Facility Issuer for amounts advanced by the Reserve Fund Credit Facility Issuer or Issuers under the Reserve Fund Credit Facility, including any amounts payable under any Financial Guaranty Agreement, together with reasonable related expenses incurred by the Reserve Fund Credit Facility Issuer and interest as provided in the Financial Guaranty Agreement.

(d) Reserve Fund. To the extent any series of the Bonds has a Reserve Fund Requirement and such Reserve Fund Requirement is not fully satisfied by a Reserve Fund Credit Facility or Facilities or funds of the Municipality, or a combination thereof, the next available money in the Revenue Fund shall be used to make deposits into the applicable subaccount of the Reserve Fund. No deposit shall be required to be made to the Reserve Fund unless the amount in the Reserve Fund, together with the Reserve Fund Credit Facility or Facilities, if any, becomes less than the applicable Reserve Fund Requirement. In the event deposits to the Reserve Fund shall be required pursuant to the preceding sentence, said deposits shall be payable monthly as hereafter provided and each deposit shall be in a minimum amount equal to 1/24th of the difference between the Reserve Fund Requirement and the amount in each subaccount of said Fund, together with the Reserve Fund Credit Facility or Facilities, if any, immediately following the occurrence of such deficiency, so that any deficiency in any subaccount of said Fund shall be replenished over a period of not greater than twenty four (24) consecutive months; provided, any monthly payments in excess of said minimum payments shall be a credit against the next ensuing payment or payments. Any deposits required to be made hereunder shall be made monthly at the same time as deposits are made to the Bond Fund, commencing the first month in which the amount in the Fund, together with the Reserve Fund Credit Facility or Facilities, if any, is less than the Reserve Fund Requirement. All deposits to the Reserve Fund shall be made from the first money in the Revenue Fund thereafter received which shall not then be required to pay Current Expenses, be transferred into the Bond Fund, or to be paid to the Reserve Fund Credit Facility Issuer or Issuers as above provided. Money in the Reserve Fund shall be used solely for the purpose of paying principal of or interest on the Bonds for the payment of which funds are not available in the Bond Fund. Funds in excess of the Reserve Fund Requirement may be released to be used by the Municipality for legally permissible purposes.

At the option of the Municipality, the Municipality may satisfy the Reserve Fund Requirement applicable to a series of Bonds, or a portion thereof, by providing for the benefit of owners of such series of Bonds a Reserve Fund Credit Facility or Facilities, at any time, in an amount not greater than the Reserve Fund Requirement applicable to such series of Bonds and release an equal amount of funds on deposit in the corresponding subaccount of the Reserve Fund to be used by the Municipality for legally permissible purposes. At any time during the term hereof, the Municipality shall have the right and option to substitute a new Reserve Fund Credit Facility or Facilities for any Reserve Fund Credit Facility or Facilities previously delivered, upon notice to the Registration Agent and the Reserve Fund Credit Facility Issuer or Issuers and delivery of a Reserve Fund Credit Facility or Facilities in substitution therefor. In the event of the issuance of Parity Bonds pursuant to the restrictive provisions of Article IX hereof with a Reserve Fund Requirement or the substitution of a Reserve Fund Credit Facility or Facilities for less than the full amount of the Reserve Fund Requirement, the Municipality shall satisfy the applicable Reserve Fund Requirement by depositing funds to the Reserve Fund or obtaining a Reserve Fund Credit Facility or Facilities, or any combination thereof, in an aggregate amount equal to the applicable Reserve Fund Requirement for the series of Bonds taking into account any funds then held therein or the amount of any Reserve Fund Credit Facility or Facilities then in effect.

In the event of the necessity of a withdrawal of funds from the Reserve Fund during a time when the Reserve Fund Requirement is being satisfied by a Reserve Fund Credit Facility or Facilities and funds of the Municipality, the funds shall be disbursed completely before any demand is made on the Reserve Fund Credit Facility. In the event all or a portion of the Reserve Fund Requirement is satisfied by more than one Reserve Fund Credit Facility, any demand for payment shall be pro rata between or among the Reserve Fund Credit Facilities. If a disbursement is made by demand on a Reserve Fund Credit Facility, the Municipality, from Revenues after payment of Current Expenses and required deposits to the Bond Fund, shall reimburse the Reserve Fund Credit Facility Issuer for all amounts advanced under the Reserve Fund Credit Facility (pro rata, if more than one Reserve Fund Credit Facility), including all amounts payable under any Financial Guaranty Agreement or Agreements, and then replenish the Reserve Fund as provided herein.

In the event the Reserve Fund Requirement, or any part thereof, shall be satisfied with a Reserve Fund Credit Facility or Facilities, notwithstanding the terms of Article XII hereof, the terms, covenants, liability and liens provided or created herein or in any resolution supplemental hereto shall remain in full force and effect and said terms, covenants, liability and liens shall not terminate until all amounts payable under any Financial Guaranty Agreement have been paid in full and all obligations thereunder performed in full. If the Municipality shall fail to pay when due all amounts payable under any Financial Guaranty Agreement, the Reserve Fund Credit Facility Issuer shall be entitled to exercise any and all remedies available at law or under this Resolution other than remedies that would adversely affect owners of Bonds.

It shall be the responsibility of the Registration Agent to maintain adequate records, verified with the Reserve Fund Credit Facility Issuer or Issuers, as to the amount available to be drawn at any given time under the Reserve Fund Credit Facility or Facilities and as to the amounts paid and owing to the Reserve

Fund Credit Facility Issuer or Issuers under the terms of any Financial Guaranty Agreement and to provide notice to the Reserve Fund Credit Facility Issuer at least two days before any payment is due. The Reserve Fund Credit Facility Issuer shall receive notice of the resignation or removal of the Registration Agent and the appointment of a successor thereto.

Notwithstanding anything herein to the contrary, the Municipality may issue Parity Bonds without a Reserve Fund Requirement, as shall be specified in the bond resolution authorizing such Parity Bonds.

(e) Surplus Funds. The next available money in the Revenue Fund shall be used (i) to make payments in lieu of taxes to the Municipality, (ii) for the purpose of the payment of principal of and interest on (including reasonable reserves therefor) any bonds or other obligations payable from revenues of the System, but junior and subordinate to the Bonds, and (iii) for any legally permissible purpose, as the Board shall determine.

6.2 Investments and Maintenance of Funds. Money on deposit in the Funds described in this Section may be invested by the Board in such investments as shall be permitted by applicable law, as determined by an authorized representative of the Board, all such investments to mature not later than the date on which the money so invested shall be required for the purpose for which the respective Fund was created. All income derived from such investments shall be regarded as revenues of the System and shall be deposited in the Revenue Fund. Such investments shall at any time necessary be liquidated and the proceeds thereof applied to the purpose for which the respective Fund was created; provided, however, that in no event shall moneys in the Reserve Fund be invested in instruments that mature or are subject to repurchase more than two years from the date the money is so invested. The Board is authorized to enter into contracts with third parties for the investment of funds in any of the Funds described herein.

The Revenue Fund, the Bond Fund, and the Reserve Fund (except to the extent funded with a Reserve Fund Credit Facility or Facilities) shall be held and maintained by the Board and, when not invested, kept on deposit with a bank or financial institution regulated by and the deposits of which are insured by the Federal Deposit Insurance Corporation or similar federal agency. All moneys in such Funds so deposited shall at all times be secured to the extent and in the manner required by applicable State law.

ARTICLE VII.
COVENANTS

7.1 Charges for Services Supplied by the System. While the Bonds remain outstanding and unpaid, the Board covenants and agrees that charges for all services supplied through the medium of the System to all consumers and users shall be reasonable and just, taking into account and consideration the cost and value of the System and the cost of maintaining, operating, repairing and insuring the System, a proper and necessary allowance for the depreciation thereof, and the amounts necessary for the payment of principal of and interest on all obligations payable from revenues of the System; and that there shall be charged against all users of the services of the System such rates and amounts as shall be fully adequate to comply with the covenants of this resolution.

7.2 Insurance. The Municipality or the Board (as applicable) shall maintain insurance on the properties of the System of a kind and in an amount which would normally be carried by private companies engaged in a similar type and size of business, provided, the Municipality and the Board shall not be required to insure beyond the limits of immunity provided by Sections 29-20-101 et seq., Tennessee Code Annotated, or other applicable law. The proceeds of any such insurance, except public liability insurance, shall be used to replace the part or parts of the System damaged or destroyed, or, if not so used, shall be placed in the Revenue Fund.

7.3 Books and Accounts; Audits. The Board will cause to be kept proper books and accounts adapted to the System, will cause the books and accounts to be audited in accordance with GAAP at the end of each Fiscal Year by a recognized independent certified public accountant or a firm of such accountant or accountants and, upon written request, will make available to any registered owner of the Bonds the balance sheet and the profit and loss statement of the Board as certified by such accountant or accountants.

All expenses incurred in the making of the audits required by this subsection shall be regarded and paid as Operating Expenses. The Board further agrees to cause copies of such audits to be furnished to the registered owner of any of the Bonds, at the written request thereof, within one year after the close of each Fiscal Year. The registered owner of any of the Bonds shall have at all reasonable times the right to inspect the System and the records, accounts and data of the Board relating thereto. If the Board fails to provide the audits and reports required by this subsection, the registered owner or owners of twenty-five percent (25%) in principal amount of the Bonds may cause such audits and reports to be prepared at the expense of the Board.

7.4 Rate Covenant. The Municipality and the Board shall establish, fix, prescribe and collect rates, charges and fees for the sale or use of System services furnished by the Issuer which, together with other income, are reasonably expected to yield Net Revenues which are at least equal to the Rate Covenant Requirement for the forthcoming Fiscal Year. The Issuer agrees that should the annual financial statement made in accordance with the provisions of Section 7.3 disclose that during the period covered by such financial statement the Net Revenues were not at least equal to the Rate Covenant Requirement, the Issuer shall revise the schedule of rates, charges and fees insofar as is practicable and further revise Operating Expenses so as to produce the necessary Net Revenues for future periods as herein required. The Issuer shall revise the schedules of rates, charges and fees as provided in the preceding sentence within 120 days after the filing of the financial statements pursuant to Section 7.3.

7.5 Sale or Disposal of System. The Municipality and the Board will not sell, lease, mortgage, or in any manner dispose of the System, or any part thereof, including any and all extensions and additions that may be made thereto, or any facility necessary for the operation thereof; provided, however, the use of any of the System facilities may at any time be permanently abandoned or otherwise disposed of or any of the System facilities sold at fair market value, provided that:

(a) The Municipality and the Board are in full compliance with all covenants and undertakings in connection with all bonds, notes and other obligations then outstanding and payable from the revenues of the System and any required reserve funds for such bonds, notes and other obligations have been fully established and contributions thereto are current;

(b) Any sale proceeds will be applied either (A) to redemption of Bonds in accordance with the provisions governing repayment of Bonds in advance of maturity, or (B) to the purchase of Bonds at the market price thereof so long as such price does not exceed the amount at which the Bonds could be redeemed on such date or the next optional redemption date as set forth herein or in the resolutions authorizing the Parity Bonds, or (C) to the construction or acquisition of facilities in replacement of the facilities so disposed of or other facilities constituting capital improvements to the System, or (D) the deposit to a replacement fund to be used to make capital improvements to the System;

(c) (i) The abandonment, sale or disposition is for the purpose of disposing of facilities which are no longer necessary or no longer useful to the operation of the System or (ii) the operation of the System or revenue producing capacity of the System is not materially impaired by such abandonment, sale or disposition or any facilities acquired in replacement thereof are of equivalent or greater value; and

(d) If the facilities are being sold or disposed to an entity that is not a state or local government and the facilities were financed with the proceeds of Bonds the interest on which is excludable from gross income for federal income tax purposes, the Municipality or the Board shall have received an opinion of nationally recognized bond counsel to the effect that such sale, lease, mortgage or other disposition will not jeopardize the exclusion from federal income taxation of interest on any Bonds then outstanding intended to be excludable from gross income for federal income tax purposes.

Nothing herein is intended to prohibit the lease purchase of equipment or facilities of the System hereafter to be put in service or to prohibit the transfer or exchange of service areas to provide for more efficient operation of the System so long as the Board is in full compliance with the covenants set forth herein immediately following such transfer or exchange.

Notwithstanding anything elsewhere provided in this resolution, and without being subject to any of the foregoing restrictions, with the approval of the Board, the Municipality shall have the right to sell, lease, transfer, or otherwise dispose of the System, as a whole or substantially as a whole, to any municipal corporation, county, political subdivision, governmental corporation, or governmental agency (each of which shall be included within the term "Transferee" as herein used), provided the Transferee thus acquiring the System from the Municipality will assume the performance of and be bound by all of the obligations of the Municipality and the Board to the holders of the Bonds under the covenants and provisions of this resolution.

7.6 Budgets. Prior to the beginning of each Fiscal Year, the Board shall prepare, or cause to be prepared, and adopt an annual budget of estimated revenues, Operating Expenses, and capital expenditures for the System for the ensuing Fiscal Year in compliance with the rate covenant requirement set forth in Section 7.4, and will undertake to operate the System within such budget to the best of its ability. Copies of such budgets and amendments thereto will be made available to any registered owner of a Bond upon written request.

7.7 Franchises. Neither the Municipality nor the Board will construct, finance or grant a franchise for the development or operation of facilities that compete for service with the services to be provided by the System or consent to the provision of any such services in the area currently or hereafter served by the Municipality or the Board by any other public or private entity and will take all steps necessary and proper, including appropriate legal action to prevent any such entity from providing such service; provided, nothing herein contained shall prohibit the transfer or exchange of service areas to provide for more efficient operation of the System so long as the Board is in full compliance with the covenants set forth herein immediately following such transfer or exchange.

ARTICLE VIII.
REMEDIES OF BOND OWNERS

Any registered owner of any of the Bonds may either at law or in equity, by suit, action, mandamus or other proceedings, in any court of competent jurisdiction enforce and compel performance of all duties imposed upon the Board or the Municipality by the provisions of this resolution, including the making and collecting of sufficient rates, the proper application of and accounting for revenues of the System, and the performance of all duties imposed by the terms hereof.

If any default be made in the payment of principal of, premium, if any, or interest on the Bonds, then upon the filing of suit by any registered owner of said Bonds, any court having jurisdiction of the action may appoint a receiver to administer the System in behalf of the Board or the Municipality with power to charge and collect rates sufficient to provide for the payment of all bonds and obligations outstanding against the System and for the payment of Operating Expenses, and to apply the income and revenues thereof in conformity with the provisions of this resolution.

ARTICLE IX.
PROHIBITION OF PRIOR LIEN; PARITY BONDS

9.1 Prohibition of Prior Liens. Neither the Municipality nor the Board will issue other bonds or obligations of any kind or nature payable from or enjoying a lien on the revenues of the System having priority over the Bonds.

9.2 Parity Bonds. Additional bonds, notes, Loan Agreements or obligations may hereafter be issued on a parity with the Bonds under the following conditions but not otherwise:

(a) Any portion (including any maturities or portions thereof whether or not in chronological order and any amounts subject to mandatory redemption) or all of a series of the Bonds may be refunded at maturity, upon redemption in accordance with their terms, or upon payment, prepayment or redemption with the consent of the owners of such bonds, and the refunding bonds so issued shall constitute Parity Bonds secured on a parity with the Bonds thereafter outstanding, if all of the following conditions are satisfied:

(i) the Board shall have obtained a report from a Municipal Advisor demonstrating that the refunding is expected to reduce the total debt service payments on the Bonds, including payments on related Credit Facilities; and

(ii) the requirements of subsections (b)(ii) and (iv) below are met with respect to such refunding.

(b) Parity Bonds (including refunding Parity Bonds which do not meet the requirements of (a)) may also be issued on a parity with outstanding Bonds, and the Parity Bonds so issued shall be secured on a parity with such outstanding Bonds, if all of the following conditions are satisfied:

(i) There shall have been procured and filed with the Board a report by a Municipal Advisor or a certificate by the Chairman of the Board, or his designee, to the effect that the historical Net Revenues for either (i) a period of 12 consecutive months of the most recent 18 consecutive months prior to the issuance of the proposed Parity Bonds or (ii) the most recent audited Fiscal Year, were equal to at least 120% of the Maximum Annual Debt Service Requirement on all Bonds which will be outstanding immediately after the issuance of the proposed Parity Bonds, in the then current and each succeeding Fiscal Year, provided, however, (w) the report or certificate may contain pro forma adjustments to historical related Net Revenues equal to the increased annual amount of Net Revenues attributable to improvements to the System that had been placed in service prior to the delivery of the proposed Parity Bonds and that are not fully reflected in the historical related Net Revenues actually received during such historical period used, (x) the report or certificate may contain pro forma adjustments to historical related Net Revenues equal to 100% of the increased annual amount attributable to any revision in the schedule of rates, fees, and charges for the services and facilities furnished by the System, imposed prior to the date of delivery of the proposed Parity Bonds and not fully reflected in the historical related Net Revenues actually received during such historical period used; (y) if the Municipality or the Board has a contract to purchase or otherwise acquire an Acquired System that will become part of the System, the historical Net Revenues may be adjusted to include the anticipated Net Revenues from the Acquired System; and (z) if the Municipality or the Board has entered into a contract to furnish services of the System that is not fully reflected in the historical Net Revenues of the System, such historical Net Revenues may be adjusted to include the anticipated Net Revenues from such contract.

(ii) the Board shall have received, at or before issuance of the Parity Bonds, a report from a Municipal Advisor or a certificate of the Chairman of the Board, or his designee, to the effect that (x) the payments required to be made into the Bond Fund have been made and the balance in the Bond Fund is not less than the balance required hereby as of the date of issuance of the proposed Parity Bonds; and (y) the Reserve Fund is funded to the Reserve Fund Requirement and will be funded to the Reserve Fund Requirement immediately following the issuance of the proposed Parity Bonds.

(iii) The resolution authorizing the proposed Parity Bonds must require the proceeds of such proposed Parity Bonds to be used to make capital improvements to or capital acquisitions for the System, to pre-purchase supplies of electrical power, to fund interest on the proposed Parity Bonds, to refund other obligations issued for such purposes (whether or not such refunding Parity Bonds satisfy the requirements of (a)), for any other legal purpose under applicable law as evidenced by an opinion of Bond Counsel, and/or to pay expenses incidental thereto and to the issuance of the proposed Parity Bonds.

(iv) The Chairman of the Board shall have certified, by written certificate dated as of the date of issuance of the Parity Bonds, that the Board is in compliance with all requirements of this resolution.

(c) Upon the determination of the Board to combine an Acquired System into the System, all outstanding Bonds and any bonds, notes and other obligations of the Acquired System outstanding upon such combination may, at the election of the Board, be payable from Net Revenues of the combined System on a parity and equality of lien with each other, provided that there shall be filed with the Board:

(i) a report by a Municipal Advisor or a certificate by the Chairman of the Board, or his designee the Net Revenues of such combined System for a period of 12 consecutive months of the most recent 18 consecutive months prior to such combination were equal to at least 120% of the Maximum Annual Debt Service Requirement on all Bonds and any bonds, notes and other obligations of the Acquired System which will be outstanding immediately after the combination, provided, however, (w) the report or certificate may contain pro forma adjustments to historical related Net Revenues equal to the increased annual amount of Net Revenues attributable to improvements to the System that had been placed in service prior to the combination and that are not fully reflected in the historical related Net Revenues actually received during such historical period used, (x) the report or certificate may contain pro forma adjustments to historical related Net Revenues equal to 100% of the increased annual amount attributable to any revision in the schedule of rates, fees, and charges for the services and facilities furnished by the System, imposed prior to the date of the combination and not fully reflected in the historical related Net Revenues actually received during such historical period used; and (y) if the Municipality or the Board has entered into a contract to furnish services of the System that is not fully reflected in the historical Net Revenues of the System, such historical Net Revenues may be adjusted to include the anticipated Net Revenues from such contract.

(ii) A certificate of the Chairman of the Board, as of the date of the combination, that the Board is in compliance with all requirements of this resolution.

9.3 Applicability of Resolution to Parity Bonds. All the provisions and covenants of this resolution relating to negotiability and registration of Bonds, creation and investment of funds and the application of revenues, the operation of the System and charges for services of the System, the remedies of owners of the Bonds, the issuance of additional bonds, modification of this resolution, the defeasance of Bonds, and such other provisions hereof as are appropriate may be incorporated by reference into supplemental resolutions authorizing additional bonds, and said provisions, when so incorporated, shall be equally applicable to the additional bonds issued pursuant to the terms of this Article IX in all respects and with like force and effect as though said provisions were recited in full in said supplemental resolutions and shall continue to be applicable so long as any such bonds remain outstanding.

ARTICLE X.
SALE OF THE SERIES 2024 BONDS

10.1 Sale of Bonds. The Series 2024 Bonds may be sold at negotiated sale to the Underwriter or at a competitive public sale as determined by the Mayor or the Chairman of the Board at a price of not less than 98.00% of par, exclusive of original issue discount, plus accrued interest. The sale of the Series 2024 Bonds to the Underwriter or by public sale shall be binding on the City, and no further action of the Governing Body or the Board with respect thereto shall be required. If the Series 2024 Bonds are sold at negotiated sale, the Mayor of the City is authorized to execute a bond purchase agreement, providing for the purchase and sale of the Series 2024 Bonds to the Underwriter. The form of the Bond set forth in Article V shall be conformed to reflect any changes made pursuant to this Article X. If the Series 2024 Bonds are sold at a competitive public sale, the Series 2024 Bonds shall be awarded by the Mayor to the bidder that offers to purchase the Series 2024 Bonds for the lowest true interest cost to the City, which such bidder shall be the Underwriter.

10.2 Establishment and Amendment of Terms. In connection with the sale of the Series 2024 Bonds, the Mayor of the Municipality and the Chairman of the Board, are further authorized to:

(a) change the dated date of the Series 2024 Bonds to a date other than their delivery date;

(b) determine whether to finance capitalized interest for the Series 2024 Bonds;

(c) change the first interest payment date on the Series 2024 Bonds to a date other than July 1, 2025;

(d) establish the principal and interest payment dates for the Series 2024 Bonds; provided that the resulting debt service structure shall in no event constitute "balloon indebtedness" as defined in Section 9-21-133, Tennessee Code Annotated.

(e) designate maturity amounts of, the Series 2024 Bonds, provided the total principal amount does not exceed the total amount authorized herein and the final maturity date is not later than July 1, 2044;

(f) adjust the Municipality's optional redemption provisions with respect to the Series 2024 Bonds, provided the redemption premium, if any, shall not exceed two percent of the par amount of the Series 2024 Bonds called for redemption;

(g) sell the Series 2024 Bonds or any maturities thereof as term bonds with mandatory redemption requirements corresponding to the maturities as determined by the Mayor of the Municipality and the Chairman of the Board, or either of them, as they shall deem most advantageous to the Municipality; and

(h) determine whether to establish a Reserve Fund Requirement for the Series 2024 Bonds and, if applicable, determine the manner of its funding, including without limitation through the purchase of a Reserve Fund Credit Facility.

The form of the Series 2024 Bond set forth in Article V hereof shall be conformed to reflect any changes made pursuant to this Section 10.2 hereof.

10.3 Authentication and Delivery of Bonds; Closing Certificates and Agreements. The Mayor of the Municipality and the City Recorder, or either of them, are authorized to cause the Series 2024 Bonds to be authenticated by the Registration Agent and delivered to the underwriter, and to execute, publish, and deliver all certificates and documents, as they shall deem necessary in connection with the sale and delivery of the Series 2024 Bonds.

10.4 Bond Insurance. The Mayor shall, in consultation with the Chairman of the Board and the Municipal Advisor, cause, if advantageous to the Municipality and the Board, all or a portion of the Series 2024 Bonds to be insured by a bond insurance policy issued by a nationally recognized bond insurance company. The Mayor is authorized to enter into agreements required by the bond insurance company with respect to the Series 2024 Bonds to the extent not inconsistent with this Resolution.

ARTICLE XI.
DISPOSITION OF BOND PROCEEDS

The proceeds of the sale of the Series 2024 Bonds shall be used and applied as follows:

(a) if the Mayor and Chairman of the Board elect to establish a Reserve Fund Requirement for the Series 2024 Bonds that must be funded upon the issuance of the Series 2024 Bonds, then an amount sufficient, together with any funds elected to be contributed by the Board, to fund such Reserve Fund Requirement shall be either deposited to a Series 2024 subaccount of the Reserve Fund or paid to the Reserve Fund Credit Facility Issuer, as applicable; and

(b) the remainder of the proceeds of the Series 2024 Bonds shall be deposited in a special fund of the Board known as the "Series 2024 Construction Fund" to be kept separate and apart from all other funds of the Board. Moneys in the Construction Fund shall be disbursed solely to pay the costs of the Project, to pay interest on the Series 2024 Bonds during the construction of the Project and for up to six months thereafter, reimburse the Board for amounts previously spent to pay said costs, and pay costs of issuance of the Series 2024 Bonds, including necessary legal, accounting and fiscal expenses, printing, engraving, advertising and similar expenses, administrative and clerical costs, Registration Agent fees, bond insurance premiums, if any, and other necessary miscellaneous expenses incurred in connection with the issuance and sale of the Series 2024 Bonds and construction of the Project. Money in the Construction Fund shall be secured in the manner prescribed by applicable statutes relative to the securing of public or trust funds, if any, or, in the absence of such a statute, by a pledge of readily marketable securities having at all times a market value of not less than the amount in the Construction Fund. Money in the Construction

Fund shall be expended only for the purposes authorized by this resolution. Any funds remaining in the Construction Fund after completion of the Project and payment of authorized expenses shall be deposited to the Bond Fund. Moneys in the Construction Fund shall be invested by the Board in such investments as shall be permitted by applicable law.

ARTICLE XII.
DISCHARGE AND SATISFACTION OF BONDS

If the Municipality or the Board shall pay and discharge the indebtedness evidenced by all or any portion of the Bonds in any one or more of the following ways:

(a) By paying or causing to be paid, by deposit of sufficient funds as and when required with the Registration Agent, the principal of and interest on such Bonds as and when the same become due and payable;

(b) By depositing or causing to be deposited with any trust company or financial institution whose deposits are insured by the Federal Deposit Insurance Corporation or similar federal agency and which has trust powers ("an Agent"; which Agent may be the Registration Agent) in trust or escrow, on or before the date of maturity or redemption, sufficient money or Defeasance Obligations, the principal of and interest on which, when due and payable, will provide sufficient moneys to pay or redeem such Bonds and to pay premium, if any, and interest thereon when due until the maturity or redemption date (provided, if such Bonds are to be redeemed prior to maturity thereof, proper notice of such redemption shall have been given or adequate provision shall have been made for the giving of such notice);

(c) By delivering such Bonds to the Registration Agent, for cancellation by it;

and if the Municipality or the Board shall also pay or cause to be paid all other sums payable hereunder by the Municipality or the Board with respect to such Bonds, or make adequate provision therefor, and by resolution of the Governing Body instruct any such Escrow Agent to pay amounts when and as required to the Registration Agent for the payment of principal of and interest and redemption premiums, if any, on such Bonds when due, then and in that case the indebtedness evidenced by such Bonds shall be discharged and satisfied and all covenants, agreements and obligations of the Municipality and the Board to the holders of such Bonds shall be fully discharged and satisfied and shall thereupon cease, terminate and become void.

If the Municipality or the Board shall pay and discharge the indebtedness evidenced by any of the Bonds in the manner provided in either clause (a) or clause (b) above, then the registered owners thereof shall thereafter be entitled only to payment out of the money or Defeasance Obligations deposited as aforesaid.

Except as otherwise provided in this Section, neither Defeasance Obligations nor moneys deposited with the Registration Agent pursuant to this Section nor principal or interest payments on any such Defeasance Obligations shall be withdrawn or used for any purpose other than, and shall be held in trust for, the payment of the principal and interest on said Bonds; provided that any cash received from such principal or interest payments on such Defeasance Obligations deposited with the Registration Agent, (A) to the extent such cash will not be required at any time for such purpose, shall be paid over to the Municipality as received by the Registration Agent and (B) to the extent such cash will be required for such purpose at a later date, shall, to the extent practicable, be reinvested in Defeasance Obligations maturing at times and in amounts sufficient to pay when due the principal and interest to become due on said Bonds on or prior to such redemption date or maturity date thereof, as the case may be, and interest earned from such reinvestments shall be paid over to the Board, as received by the Registration Agent.

ARTICLE XIII.
MODIFICATION OF RESOLUTION

13.1 Amendment Without Bondholder Consent. This resolution may be amended without the consent of or notice to the registered owners of the Bonds for the purpose of curing any ambiguity or formal defect or omission herein; provided such amendment shall not adversely affect the registered owners, without taking into account any bond insurance policy.

13.2 Other Amendments. In addition to the amendments to this resolution without the consent of registered owners as referred to in Section 13.1 above, the registered owners of a majority in aggregate principal amount of the Bonds at any time outstanding (not including in any case any Bonds which may then be held or owned by or for the account of the Municipality but including such refunding bonds as may have been issued for the purpose of refunding any of such Bonds if such refunding bonds shall not then be owned by the Municipality) shall have the right from time to time to consent to and approve the adoption by the Governing Body of a resolution or resolutions modifying any of the terms or provisions contained in this resolution; provided, however, that this resolution may not be so modified or amended in such manner, without the consent of 100% of the registered owners of the Bonds, as to:

(a) Make any change in the maturities or redemption dates of the Bonds;

(b) Make any change in the rates of interest borne by the Bonds;

(c) Reduce the amount of the principal payments or redemption premiums payable on the Bonds;

(d) Modify the terms of payment of principal of or interest on the Bonds or impose any conditions with respect to such payments;

(e) Affect the rights of the registered owners of less than all of the Bonds then outstanding; or

(f) Reduce the percentage of the principal amount of the Bonds the consent of the registered owners of which is required to effect a further modification.

13.3 Procedure for Modification. Whenever the Municipality shall propose to amend or modify this resolution under the provisions of this Section, it shall cause notice of the proposed amendment to be mailed by first-class mail, postage prepaid, to the owner of each Bond then outstanding. Such notice shall briefly set forth the nature of the proposed amendment and shall state that a copy of the proposed amendatory resolution is on file in the office of the Municipality for public inspection.

Whenever at any time within one year from the date of mailing of said notice there shall be filed with the Secretary an instrument or instruments executed by the registered owners of at least a majority in aggregate principal amount of the Bonds then outstanding as in this Section defined, which instrument or instruments shall refer to the proposed amendatory resolution described in said notice and shall specifically consent to and approve the adoption thereof, thereupon, but not otherwise, the Municipality may adopt such amendatory resolution and such resolution shall become effective and binding upon the owners of all Bonds.

If the registered owners of at least a majority in aggregate principal amount of the Bonds outstanding as in this section defined, at the time of the adoption of such amendatory resolution, or the predecessors in title of such owners, shall have consented to and approved the adoption thereof as herein provided, no registered owner of any Bonds, whether or not such owner shall have consented to or shall have revoked any consent as in this Section provided, shall have any right or interest to object to the adoption of such amendatory resolution or to object to any of the terms or provisions therein contained or to the operation thereof or to enjoin or restrain the Municipality from taking any action pursuant to the provisions thereof.

Any consent given by the registered owner of a Bond pursuant to the provisions of this Section shall be irrevocable for a period of six months from the date of the publication of the notice above provided for and shall be conclusive and binding upon all future registered owners of the same Bond during such period. Such consent may be revoked at any time after six months from the date of publication of such notice by the registered owner who gave such consent or by a successor in title by filing notice of such revocation at the Municipality office, but such revocation shall not be effective if the registered owners of a majority in aggregate principal amount of the Bonds outstanding as in this Section defined shall have, prior to the attempted revocation, consented to and approved the amendatory resolution referred to in such revocation.

The fact and date of the execution of any instrument under the provisions of this Section may be proved by the certificate of any officer in any jurisdiction who by the laws thereof is authorized to take acknowledgments of deeds within such jurisdiction, that the person signing such instrument acknowledged before him the execution thereof, or may be proved by an affidavit of a witness to such execution sworn to before such officer.

The amount (number(s)) of the Bonds owned by any person executing such instrument and the date of the ownership of the same shall be proved by reference to the Bond registration records maintained by the Registration Agent, which records shall constitute conclusive proof of the ownership thereof.

Notwithstanding the foregoing, if any Bonds are insured by a bond insurance policy, the bond insurer issuing such bond insurance policy shall be entitled to consent to any modifications to this Resolution on behalf of the owners of the Bonds insured by such bond insurer, provided that no bond insurer shall be entitled to consent to any modifications to this Resolution that require the unanimous consent of the owners of the Bonds as described above.

ARTICLE XIV.
OFFICIAL STATEMENT

The Mayor of the Municipality and the Chairman of the Board, are hereby authorized and directed to provide for the preparation and distribution of Preliminary Official Statement describing the Series 2024 Bonds and the Municipality. The Mayor of the Municipality and the Chairman of the Board, shall make such completions, omissions, insertions and changes in the Preliminary Official Statement not inconsistent with this resolution as are necessary or desirable to complete it as a final Official Statement for purposes of Rule 15c2-12(e)(3) of the Securities and Exchange Commission. The Mayor of the Municipality and the Chairman of the Board, shall arrange for the delivery to the purchaser of a reasonable number of copies of the Official Statement within seven business days after the Series 2024 Bonds have been sold for delivery by the winning bidder to each potential investor requesting a copy of the Official Statement.

The Mayor of the Municipality and the Chairman of the Board, are authorized, on behalf of the Municipality, to deem the Preliminary Official Statement and the Official Statement in final form, each to be final as of its date within the meaning of Rule 15c2-12(b)(1), except for the omission in the Preliminary Official Statement of certain pricing and other information allowed to be omitted pursuant to such Rule

15c2-12(b)(1). The distribution of the Preliminary Official Statement and the Official Statement in final form shall be conclusive evidence that each has been deemed in final form as of its date by the Municipality except for the omission in the Preliminary Official Statement of such pricing and other information.

ARTICLE XV.
FEDERAL TAX COVENANTS

The Board and the Municipality recognize that the purchasers and holders of any Series 2024 Bonds issued as federally tax-exempt bonds will have accepted them on, and paid therefor a price that reflects, the understanding that interest thereon is excluded from gross income for purposes of federal income taxation under laws in force on the date of delivery of such Series 2024 Bonds. Accordingly, the Municipality and the Board agree that they shall take no action that may render the interest on any of said Series 2024 Bonds subject to federal income taxation. It is the reasonable expectation of the Municipality and the Board that the proceeds of any federally tax-exempt Series 2024 Bonds will not be used in a manner which will cause the Series 2024 Bonds to be "arbitrage bonds" within the meaning of Section 148(a) of the Internal Revenue Code of 1986, as amended (the "Code"), including any lawful regulations promulgated or proposed thereunder, and to this end the proceeds of such Series 2024 Bonds and other related funds established for the purposes herein set out, shall be used and spent expeditiously for the purposes described herein.

The Municipality and the Board further covenant and represent that in the event they shall be required by Section 148(f) of the Code to pay any investment proceeds of the Series 2024 Bonds to the United States government, they will make such payments as and when required by said Section and will take such other actions as shall be necessary or permitted to prevent the interest on the Series 2024 Bonds from becoming subject to inclusion in the gross income for purposes of federal income taxation. The Mayor of the Municipality, the City Recorder and the Chairman of the Board, or any one of them, is authorized and directed to make such certifications in this regard in connection with the sale of the Series 2024 Bonds as any or all shall deem appropriate, and such certifications shall constitute a representation and certification of the System.

It is reasonably expected that the Municipality will reimburse the Board for certain expenditures made by the Board in connection with the Project by issuing the Series 2024 Bonds. This resolution shall be placed in the minutes of the Governing Body and shall be made available for inspection by the general public at the office of the Governing Body. This resolution constitutes a declaration of official intent under Treas. Reg. §1.150-2.

ARTICLE XVI.
CONTINUING DISCLOSURE

The Municipality and the Board hereby covenants and agree that they will provide financial information and event notices if and as required by Rule 15c2-12 of the Securities Exchange Commission for the Series 2024 Bonds. The Mayor of the Municipality and the Chairman of the Board are authorized to execute at the closing of the sale of the Series 2024 Bonds, an agreement for the benefit of and enforceable by the owners of the Series 2024 Bonds specifying the details of the financial information and material event notices to be provided and its obligations relating thereto. Failure of the Board to comply with the undertaking herein described and to be detailed in said closing agreement, shall not be a default hereunder, but any such failure shall entitle the owner or owners of any of the Series 2024 Bonds to take such actions and to initiate such proceedings as shall be necessary and appropriate to cause the Board to comply with its undertaking as set forth herein and in said agreement, including the remedies of mandamus and specified performance.

ARTICLE XVII.
MISCELLANEOUS

17.1 Resolution a Contract. The provisions of this resolution shall constitute a contract between the Municipality, the Board and the registered owners of the Bonds, and after the issuance of the Series 2024 Bonds, no change, variation or alteration of any kind in the provisions of this resolution shall be made in any manner, except as provided in Article XIII hereof, until such time as the Bonds shall have been paid in full or discharged pursuant to Article XII hereof.

17.2 Engagement of Bond Counsel. The Mayor and Chairman of the Board are hereby authorized and directed to engage Bass, Berry & Sims PLC to serve as bond counsel to the Municipality and the Board in connection with the issuance of the Series 2024 Bonds.

17.3 Repeal of Conflicting Resolutions and Effective Date. All other resolutions and orders, or parts thereof, in conflict with the provisions of this resolution are, to the extent of such conflict, hereby repealed and this resolution shall be in immediate effect from and after its adoption.

17.4 Separability. If any section, paragraph or provision of this resolution shall be held to be invalid or unenforceable for any reason, the invalidity or unenforceability of such section, paragraph or provision shall not affect any of the remaining provisions of this resolution.

17.5 Authority. The bonds authorized by this resolution are issued pursuant to the Act and other applicable provisions of law.

(signature page follows)

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after its final passage the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

____
MAYOR PAIGE BROWN

ATTEST:

____
CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

____
SUSAN HIGH-MCAULEY

STATE OF TENNESSEE)
)
COUNTY OF SUMNER)

I, Connie W. Kittrell, hereby certify that I am the duly qualified and acting City Recorder of the City of Gallatin, Tennessee (the "City"), and as such official I further certify that attached hereto is a copy of excerpts from the minutes of a regular meeting of the Governing Body of the City held __________, 2024; that these minutes were promptly and fully recorded and are open to public inspection; that I have compared said copy with the original minute record of said meeting in my official custody; and that said copy is a true, correct and complete transcript from said original minute record insofar as said original record relates to not to exceed $12,200,000 in aggregate principal amount of Electric System Revenue Bonds, Series 2024 of said City.

WITNESS my official signature and seal of said City this ____ day of ____________, 2024.

____
City Recorder

(SEAL)

45463120.2

CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

9/10/2024

DEPARTMENT: **Finance** **AGENDA # 5**

SUBJECT:
RESOLUTION AUTHORIZING THE ISSUANCE OF NOT TO EXCEED $12,200,000 IN AGGREGATE PRINCIPAL AMOUNT OF ELECTRIC SYSTEM REVENUE BONDS, SERIES 2024 OF THE CITY OF GALLATIN, TENNESSEE; MAKING PROVISION FOR THE ISSUANCE, SALE AND PAYMENT OF SAID BONDS; ESTABLISHING THE TERMS THEREOF AND THE DISPOSITION OF PROCEEDS THEREFROM; PROVIDING FOR THE COLLECTION AND DISPOSITION OF REVENUES FROM THE ELECTRICAL POWER DISTRIBUTION SYSTEM OF THE MUNICIPALITY; AND MAKING PROVISION FOR THE OPERATION OF SAID SYSTEM.

SUMMARY:
Resolution authorizing the Department of Electricity to issue revenue bonds not to exceed $12,200,000 for capital improvement projects related to the electric system

RECOMMENDATION:
Approval

ATTACHMENT:

☒ **Resolution**	☐ **Correspondence**	☐ **Bid Tabulation**
☐ **Ordinance**	☐ **Contract**	☐ **Other**

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R24Ø9-77

RESOLUTION AWARDING HEALTH, VISION AND DENTAL INSURANCE CONTRACT FOR THE CITY OF GALLATIN

BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the City of Gallatin awards the contract for health, vision and dental insurance benefits provided by BlueCross BlueShield of Tennessee, and that the Mayor is hereby authorized to sign said contract on behalf of the City of Gallatin. The renewal contract shall begin effective January 1, 2025.

BE IT FURTHER RESOLVED, that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

____
MAYOR PAIGE BROWN

ATTEST:

____
CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

____
SUSAN HIGH-MCAULEY
CITY ATTORNEY

CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA

September 10, 2024

DEPARTMENT: **HR** **AGENDA #**

SUBJECT:
RESOLUTION NO. R2409-77 AWARDING HEALTH, VISION AND ENTAL INSURANCE CONTRACT FOR THE CITY OF GALLATIN

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☒ **Resolution**	☐ **Correspondence**	☐ **Bid Tabulation**
☐ **Ordinance**	☐ **Contract**	☐ **Other**

Approved ☐
Rejected ☐
Deferred ☐

Notes:

Jason E. Mumpower
Comptroller

Report On Debt Obligation

Entity and Debt Information

Entity Name
City of Gallatin

Entity Address
132 West Main Street Gallatin, Tennessee 37066

Debt Issue Name
Gas System Revenue Bonds, Series 2024

Debt Issue Face Amount
$8,375,000.00

Face Amount Premium or Discount?
Premium

Premium Amount
$745,220.75

Tax Status
Tax - Exempt

Interest Type
True Interest Cost (TIC)

True Interest Cost (TIC)
3.6609691%

Debt Obligation
Bond

Moody's Rating
Unrated

Standard & Poor's Rating
AA-

Fitch Rating
Unrated

Other Rating Agency Name
N/A

Other Rating Agency Rating
N/A

Security
Revenue

Type of Sale Per Authorizing Document
Competitive Bid

Dated Date
9/5/2024

Issue/Closing Date
9/5/2024

Final Maturity Date
1/1/2044

Debt Purpose

Purpose	Percentage	Description
Utilities	100%	Capital improvements to natural gas distribution system
Education	0%	N/A
General Government	0%	N/A
Other	0%	N/A
Refunding	0%	N/A

Cost of Issuance and Professionals

Does your Debt Issue have costs or professionals?

Yes

Description	Amount	Recurring Portion	Firm Name
Financial Advisor Fees	$25,000.00	N/A	Oakdale Municipal Advisors, LLC
Legal Fees - Bond Counsel	$20,000.00	N/A	Bass, Berry & Sims PLC
Rating Agency Fees	$23,000.00	N/A	S&P Global Ratings
Paying Agent Fees	$750.00	$500/year	U.S. Bank Trust Company, National Association
POS/Official Statement Printing Fees	$1,638.75	N/A	Ipreo
CUSIP Fees	$849.00	N/A	CUSIP Global Services
Underwriter's Discount	$44,351.91	N/A	Hilltop Securities Inc.

TOTAL COSTS	$115,589.66

Maturity Dates, Amounts, and Interest Rates

Year	Amount	Interest Rate
2025	$85,000.00	5.000
2026	$270,000.00	5.000
2027	$285,000.00	5.000
2028	$300,000.00	5.000
2029	$315,000.00	5.000
2030	$330,000.00	5.000
2031	$350,000.00	5.000
2032	$365,000.00	5.000
2033	$385,000.00	5.000
2034	$405,000.00	5.000
2035	$425,000.00	5.000
2036	$445,000.00	5.000
2037	$465,000.00	5.000
2038	$490,000.00	5.0000
2039	$515,000.00	5.000
2040	$540,000.00	5.000
2042	$1,155,000.00	4.000
2044	$1,250,000.00	4.000

See final page for Submission Details and Signatures

Submission Details and Signatures

Is there an official statement or disclosure document, as applicable, that will be posted to EMMA: https://emma.msrb.org/?

Yes

Name and title of individual responsible for posting continuing disclosure information to EMMA

Rachel Nichols, Finance Director

Signature - Chief Executive or Finance Officer of the Public Entity

Name	**Title/Position**
Paige Brown	Mayor
Email	**Alternate Email**
paige.brown@gallatintn.gov	rachel.nichols@gallatintn.gov

Signature - Preparer (Submitter) of This Form

Name	**Title/Position**
Jeff Oldham	Member
Email	**Alternate Email**
joldham@bassberry.com	alexandrea.samber@bassberry.com
Relationship to Public Entity	**Organization**
Bond Counsel	Bass, Berry & Sims PLC

Verification of Form Accuracy

By checking the box below as the signing of this form, I attest the following:

1. I certify that to the best of my knowledge the information in this form is accurate.
2. The debt herein complies with the approved Debt Management Policy of the public entity.
3. If the form has been prepared by someone other than the CEO or CFO, the CEO or CFO has authorized the submission of this document.

☑ Verify Form Accuracy

Date to be Presented at Public Meeting	**Date to be emailed/mailed to members of the governing body**
09/17/2024	N/A

Final Confirmation:

I hereby submit this report to the Division of Local Government Finance of the Tennessee Comptroller of the Treasury and understand my legal responsibility to: File this report with the members of the governing body no later than 45 days after the issuance or execution of the debt disclosed on this form. The Report is to be delivered to each member of the Governing Body and presented at a public meeting of the body. If there is not a scheduled public meeting of the governing body within forty-five (45) days, the report will be delivered by email or regular US mail to meet the 45-day requirement and also presented at the next scheduled meeting.